

Value Added Tax Act, 1996

Document type: act

Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs

Chunks merged: 48

Value Added Tax Act, 2052

Seal and Date of Publication

2052.12.7

Amending Acts

1. Value Added Tax (First Amendment) Act, 2058 2058.1.4
2. Some Nepal Laws Amendment Act, 2063 2063.6.28
3. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.1.7
4. Some Nepal Acts Amendment Act, 2072 2072.11.13
5. Finance Act, 2075 2075.3.32
6. Finance Act, 2076 2076.3.30
7. Finance Act, 2077 2077.3.15
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10. Finance Act, 2080 2080.3.31
11. Finance Act, 2081 2081.04.1

Act No. 14 of the year 2052

An Act Made to Make Provision for Levying and Collecting Value Added Tax

Preamble: Whereas, in order to make the process of collecting revenue necessary for the economic development of the country effective and to increase revenue mobilization, it is desirable to systematize the process of levying and collecting value added tax on all transactions including sale, distribution, transfer, import or export of goods or services and to collect revenue in an effective manner;

Now, therefore, Parliament has enacted this Act in the twenty-fourth year of the reign of His Majesty King Birendra Bir Bikram Shah Dev. 1. Short Title and Commencement: (1) This Act may be called the "Value Added Tax Act, 2052."

(2) This Act shall commence on the date appointed by the Government of Nepal by notification published in the Nepal Gazette. This Act has been appointed to commence from the 1st day of Mangsir, 2054 (as per the notification of Nepal Gazette: 2054.5.2). 2. Definition: Unless the subject or context otherwise requires, in this Act,-

(a) "Tax" means the value added tax leviable under this Act.

(b) "Transaction" means the act of supplying any goods or services.

(c) "Taxable Transaction" means a transaction referred to in subsection (1) of Section 5. Amended by Finance Act, 2075. (d) "Taxable Value" means the value determined pursuant to Sections 12 and 12A. in

relation to any goods or services.

(e) "Goods" means both movable and immovable property.

(f) "Service" means anything other than goods. Amended by Finance Act, 2075. (g) "Supply" means the act of selling, exchanging, transferring any goods or services, or giving permission related thereto, or making a contract or lease, with or without consideration. Amended by Finance Act, 2075. (h) "Consideration" means anything received as the price for the supply of goods or services.

(i) "Import" means the act of bringing goods or services into Nepal Deleted by Republic Strengthening and Some Nepal Laws Amendment Act, 2066. pursuant to prevailing law.

Amended by Finance Act, 2075. (j) "Export" means the act of sending goods or services outside Nepal or to an export house or special economic zone pursuant to prevailing law. (k) "Market Price" means the price determined pursuant to Section 13. Added by Finance Act, 2075. (k1) "Electronic Means" means means such as computer, internet, e-mail, fax, electronic cash machine (electronic cash register), fiscal printer, and that word also refers to means of electronic payment and other means of a similar nature as prescribed by the Department. Added by Finance Act, 2079. (k2) "Electronic Service" means the following services that require information technology essentially for providing service to the consumer and which are provided automatically through the internet with minimal human intervention:- (a) Advertising service, (b) Films, television, music, over the top (OTT) and subscription-based other similar services, (c) Data collection related service, (d) Cloud service, (e) Gaming service, (f) Mobile application related service, (g) Internet marketplace (online market place) service and services made available through it, (h) Supply and updating of software, (i) Download services including data, images, (j) Consultancy, skill development and training service, (k) Other services of a similar nature in addition to clauses (a) to (j). Amended by Finance Act, 2075. (l) "Person" means a natural person, firm, company, association, organization, partnership, cooperative, joint venture, trust or fund, and that word also refers to a government body, religious organization, charitable institution or other such body, and their branches or sub-branches, engaged in taxable transactions with or without profit motive. Amended by Finance Act, 2079. (m) "Registered Person" means a person registered to transact pursuant to Sections 10, 10A., 10B. and 10B1. Added by Finance Act, 2079. (m1) "Non-resident Person" means a person outside Nepal who does not have a permanent address for business in Nepal, or does not have a business representative or a legally recognized representative. Amended by Finance Act, 2079. (n) "Registration Number" means the registration number provided pursuant to Sections 10, 10A., 10B. and 10B1. (o) "Supplier" means a person who supplies any goods or services. (p) "Recipient" means a person who receives any goods or services. Amended by Finance Act, 2075. (q) "Taxpayer" means a person engaged in a taxable transaction under this Act or a person liable to pay tax.

Added by First Amendment. (q1) "Tax Period" means the period for which a taxpayer is required to submit a tax return pursuant to Section 18. Amended by Finance Act, 2075. (r) "Department" means the Inland Revenue Department. (s) "Director General" means the Director General of the Department. Amended by Finance Act, 2075. (t) "Tax Officer" means a Tax Officer or Chief Tax Officer or Chief Tax Administrator appointed by the Government of Nepal, and that word also refers to a Branch Officer, Director, Deputy Director General of the Department, or any other officer designated by the Government of Nepal to exercise the powers of a Tax Officer under this Act. (u) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act. 3. Power to Appoint or Designate Tax Officer: For the purposes of this Act, the Government of Nepal may appoint such number of Tax Officers as necessary, and if the Government of Nepal deems necessary, it may designate any other officer of the Government of Nepal to

perform the functions of a Tax Officer. Amended by Finance Act, 2075. 4. Jurisdiction of Tax Officer: (1) The jurisdiction of a Tax Officer shall be as determined by the Ministry of Finance. (2) The Director General may designate a Tax Officer to inspect and monitor the transactions of taxpayers in areas other than his/her own jurisdiction and to make tax assessments. 5. Levy of Value Added Tax: (1) Save as otherwise provided in this Act, value added tax shall be levied on the following transactions:- (a) On goods or services supplied within Deleted by Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Nepal, (b) On goods or services imported into Deleted by Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Nepal, (c) On goods or services exported outside Deleted by Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Nepal. (2) Tax shall be levied on the taxable value of each transaction. (3) Notwithstanding anything written elsewhere in this Act, tax shall not be levied on the transaction of goods or services specified in Schedule-1. Moreover, tax previously paid on the purchase of such goods or services shall not be deductible under Section 17 or refundable under Section 24. Amended by Finance Act, 2075. 5A.

Tax not to be levied on Transfer of Business Ownership: (1) Notwithstanding anything written otherwise in this Act, tax shall not be levied on the transfer of ownership occurring when a registered person sells his/her ongoing business to another registered person, or when the business is transferred to the name of a successor due to the death of such person. Upon such sale or transfer of business, the registered person or the person taking over the transfer shall give information thereof to the Department as prescribed. (2) Notwithstanding anything written in subsection (1), if any industry or business required or registered under law is transferred, the person acquiring ownership shall bear the tax liability according to law. (3) Subject to subsection (2), the person acquiring ownership shall bear the duty to safely maintain the accounts, registers, and books of account of (prior to the transfer) such industry or business for the period prescribed under this Act. Added by First Amendment. 5B. Power to Order Registration: If the Tax Officer has reasonable grounds to believe that a person who is required to register is carrying on any transaction without registering, such Tax Officer may order such person to register. Amended by Finance Act, 2075. Provided that a person claiming that registration is not required because the transaction is only up to the amount prescribed under Section 9 shall submit proof thereof within thirty days from the date of receipt of the order to register. 6.

Place and Time of Supply: (1) For the purpose of tax assessment and collection under this Act, whether the supply of any goods or services is made within or outside Nepal shall be determined as prescribed. (2) For the purpose of tax assessment and collection under this Act, the supply of any goods or services shall be deemed to have taken place at the earliest of the following times:- (a) At the time the supplier issues an invoice, (b) In the case of supply of goods, at the time the recipient collects or receives the goods from the supplier's place of business, (c) In the case of supply of services, at the time the service is rendered, (d) At the time the supplier receives consideration for the goods or services. (3) Notwithstanding anything written in subsection (2), in the following circumstances, the time as follows shall be deemed the time of supply:- (a) In the case of telecommunication services supplied continuously or other similar public services, the time of issuance of invoice, (b) In the case where, under a contract, the price of any goods or services is payable in installments partially on more than one day, the time which is earlier of the time of payment or the day specified in the contract as the due date for payment, (c) In the case of goods or services used in a manner not entitling deduction of tax under this Act, the time of such use of goods or services. (4) If more than one of the circumstances mentioned in subsection (2) can apply simultaneously in respect of the time of supply of a transaction, the determination of the time of supply in such transaction shall be as prescribed by the Director General on a case-by-case basis. 7. Rate of Tax: Amended by Finance Act, 2075. (1) The rate of tax leviable under this Act shall be a single rate of thirteen percent. (2) Notwithstanding anything written in subsection (1), the transaction of goods or services specified in Schedule-2 shall be subject to tax at zero rate. 8. Tax

Assessment and Collection: (1) A registered person shall assess and collect tax on the taxable value in accordance with this Act and the rules made under this Act.

Amended by Finance Act, 2075. (2) A person, whether registered or not, receiving services from any person outside Nepal shall assess and collect tax on the taxable value at the time which is earlier of the time of payment or the time of receipt of the service, in accordance with this Act and the rules made under this Act.

Added by Finance Act, 2080. (2A) A person, whether registered or not, hiring a means of transport or receiving transportation service from any unregistered person shall assess and collect tax on the taxable value at the time which is earlier of the time of payment or the time of receipt of the service, in accordance with this Act and the rules made under this Act. (3) Even if a building, apartment, shopping complex or other structures of a similar nature as prescribed by the Department, constructed for commercial purposes costing more than fifty lakh rupees, are constructed by an unregistered person, such construction shall be treated as if constructed by a registered person and tax shall be deposited. If not deposited accordingly, tax shall be assessed and collected from the person who owns such structure. Explanation: For the purpose of this subsection, "commercial purpose" means the act of constructing a building, apartment, shopping complex or other such structures as prescribed by the Department for sale, and using such structures as current or fixed assets for generating income. 8A. Provision of Bank Guarantee: (1) An industry which exports more than forty percent Amended by Finance Act, 2081. of its total sales of the last twelve months of operation may, upon importing raw materials necessary to produce goods equivalent to the quantity exported Amended by Finance Act, 2081., and upon importing goods for duty-free shops through a bonded warehouse, import by depositing a bank guarantee for the amount equivalent to the tax leviable at the concerned customs office. Provided that, except for imports by duty-free shops through bonded warehouses, an exporter claiming such facility must have added ten percent value addition Amended by Finance Act, 2081. upon manufacturing finished goods from raw materials for export. (2) Liquor and cigarettes imported through a bonded warehouse availing the facility under subsection (1) shall be sold only to diplomatic persons or entities entitled to customs facilities recommended by the Ministry of Foreign Affairs of the Government of Nepal. (3) The bank guarantee deposited under subsection (1) shall be released from the concerned customs office in accordance with the procedure prescribed by the Department. 9.

Exemption for Small Traders: Notwithstanding anything written elsewhere in this Act, small traders carrying out annual taxable transactions up to the prescribed amount may be granted exemption as prescribed, exempting them from registration, submission of returns, and fulfillment of other procedures. Provided that, a small trader, other than a taxpayer submitting a pre-estimated income statement under subsection (4) of Section 4 of the Income Tax Act, 2058 engaged in the transaction of goods and services subject to value added tax, who voluntarily wishes to register his/her transaction may be registered by completing the procedure under Sections 10, 10A. and 10B. 10. Registration: Amended by Finance Act, 2075. (1) A person desiring to engage in any transaction shall submit an application to the Tax Officer in the prescribed format for registration of the transaction before commencing the transaction. Amended by Finance Act, 2078. (2) If tax is levied on the goods or services transacted by any person, such person shall submit an application to the Tax Officer in the prescribed format for registration of such transaction within thirty days from the date of tax being levied or the date of commencing the transaction. (3) Notwithstanding anything written in subsections (1) and (2), a person dealing only in goods or services exempt from tax as specified in Schedule-1 shall not be required to register. (4) The Tax Officer shall register every person who submits a proper Amended by Finance Act, 2075. application under subsection (1) or (2) and issue a certificate of registration with a registration number in the prescribed format within the prescribed time limit. (5) A registered person shall keep the certificate of registration prominently displayed at the principal place of

business, and if there is more than one place of business, a copy of the certificate of registration certified by the Tax Officer shall also be kept prominently displayed at places other than the principal place. (6) A registered person shall use his/her registration number for all transactions relating to value added tax, excise, and customs, and for other transactions as prescribed. (7) If there is any change in the particulars mentioned in the application for registration under subsection (1) or (2), the registered person shall inform the Tax Officer within fifteen days of such change. 10A.

Special Provision regarding Temporary Registration: (1) In the case of exhibitions, fairs, and other such events organized temporarily, the organizer and traders not registered for value added tax who transact goods or services subject to tax at such event shall be temporarily registered for value added tax as prescribed before the start of the transaction. (2) A trader registered for value added tax under subsection (1) may transfer stock of goods to be kept at such event. (3) A taxpayer registered only for the event under subsection (1) shall, within seven days of the conclusion of the exhibition or fair organized, submit the return of transactions and deposit all tax due and cancel the temporary registration. 10B. Special Provision regarding Registration of Joint Venture: (1) If two or more persons establish a joint venture for carrying on a taxable transaction for a certain period, such persons shall submit an application for temporary registration of such joint venture to the Tax Officer of any one of the offices where they are registered. (2) Upon receipt of an application under subsection (1), the Tax Officer shall issue a certificate of registration in the prescribed format. (3) A joint venture registered under subsection (1) shall cancel the registration after the expiry of the period specified in the agreement made when establishing such venture. (4) Persons involved in a joint venture shall be jointly or severally liable for the payment of the tax liability of the joint venture in which they are involved. Amended by Finance Act, 2081. 10C. Provision regarding Registration of Non-resident Person: (1) Notwithstanding anything written elsewhere in this Act, a non-resident person transacting electronic services or offline air transport services subject to tax exceeding thirty lakh rupees in the last twelve months in Nepal shall be registered for value added tax. (2) The registration procedure for a non-resident person under subsection (1) shall be as determined by the Department. (3) If the business of a non-resident person registered under subsection (1) is closed or such person ceases to transact, the registration shall be cancelled in accordance with the procedure determined by the Department. Added by Finance Act, 2076. 10D. Special Provision regarding Updating of Registration Records: (1) Persons registered under this Act shall update registration-related information and records as prescribed by the Department in the biometric registration system of the Department, Deleted by Finance Act, 2078 Amended by Finance Act, 2075. 11.

Cancellation of Registration: (1) The Tax Officer shall cancel the registration of a registered person in any of the following circumstances:- (a) If the entity is an organized body and such organized body is closed, sold, or transferred, or its existence ceases for any other reason, (b) If the ownership is individual and the person owning it dies, (c) If the firm is a partnership and such partnership is dissolved or a partner dies, (d) If the registered person ceases to carry out taxable transactions, (e) If the taxpayer has submitted nil returns or fails to submit returns for a continuous period of twelve months, (f) If the taxable transaction of the taxpayer in the last twelve months is less than fifty lakh rupees for goods, and less than thirty lakh rupees for services or mixed transactions of goods and services, (g) If registered by mistake. (2) Notwithstanding anything written in clause (f) of subsection (1), if a taxpayer voluntarily registered under Section 9 wishes to maintain his/her registration, the registration of such taxpayer shall remain valid upon submission of an application in the prescribed format along with the last return of the preceding twelve months. (3) Within fifteen days of the submission of the tax return for cancellation of registration, the taxpayer shall submit documents for tax audit, and the Tax Officer shall audit such taxpayer and cancel the registration within three months, or if the registration is not to be cancelled, inform the taxpayer accordingly. If the Tax

Officer does not cancel the registration or does not decide that the registration shall be cancelled within that period, the taxpayer shall not be required to submit tax returns after that period. (4) The stock of capital goods, among goods for which input tax credit was previously taken, remaining at the time of cancellation of registration, shall be deemed supplied at market price and tax shall be assessed and collected.

Explanation: For the purpose of this subsection, "capital goods" means any asset or any part of an asset and assets used in taxable transactions.

(5) If any act or omission during a taxable transaction of goods or services leaves any act or liability to be performed or borne under this Act, the cancellation of the taxpayer's registration shall not absolve such taxpayer from such liability.

(6) Other procedures relating to cancellation of registration shall be as prescribed. 12. Taxable Value: (1) Save as otherwise provided in this Act, where the consideration is solely in cash, the price charged by the supplier from the recipient shall be the taxable value.

(2) The taxable value shall include Added by Finance Act, 2075. the following amounts as well:-

(a) Transportation and distribution related expenses borne by the supplier in the course of the transaction and profit margin,

Amended by Finance Act, 2075. (b) Excise duty, royalty, and other taxes, excluding the tax under this Act. Explanation: For the purpose of this clause, "other taxes" means fees, charges, or other levies applicable as per the annual Finance Act.

(3) Discount, commission, or other similar trade discount given in the price when supplying goods or services shall not be included in the taxable value.

(4) The taxable value of goods or services exchanged under barter shall be equal to the market price of the goods or services so exchanged.

(5) Save as otherwise provided in this Act, while determining the taxable value of imported goods, the taxable value shall be determined by adding the import price including transportation, insurance, commission of agents and other persons, etc., import duty, equalization duty, and any other tax leviable on import, excluding value added tax.

(6) If the price of any goods or services is significantly lower than the prevailing market price, the taxable value of such goods or services shall be equal to the market price.

(7) The taxable value of goods or services supplied for partial consideration shall be equal to the market price.

(8) Any deposit amount kept for any goods or services shall not be considered taxable value until it is adjusted as consideration for such goods or services as prescribed by the supplier. 12A.

Tax on Timber Transaction: (1) Tax shall be levied and collected on timber of national forests at the time which is earliest among the time of auction, issuance of clearance certificate, or sawing order, on the royalty amount or auction amount, whichever is higher. (2) If timber from private homestead, private forest, or community forest is sold for commercial purposes, tax shall be levied as in the case of timber from national forests as provided in subsection (1), even if no royalty is leviable. 13. Market Price: Amended by First Amendment. (1) The market price of goods or services supplied on any day shall be determined taking into

account the consideration receivable for similar goods or services supplied freely between unrelated persons. (2) For the purpose of this section, the procedure for determining market price shall be as prescribed. (3) If the market price of any goods or services cannot be determined under subsections (1) and (2), the market price of such goods and services shall be determined according to the procedure prescribed by the Director General. 14. Obligation to Issue Invoice: (1) Every registered person shall, except in circumstances as prescribed, issue an invoice to the recipient when supplying any goods or services. (2) The format of the invoice shall be as prescribed. (3) It shall be the duty of the recipient to obtain an invoice. Added by Finance Act, 2075. (4) A person transporting taxable goods exceeding ten thousand rupees outside the area prescribed by the Department shall carry the tax invoice with him/her. (5) The Department may, by publishing a notice or issuing a written order, designate any person to make public the retail sale price of any prescribed goods for the period specified in that notice or order. After receiving such notice or order, no goods shall be sold or transferred without making the retail sale price public. (6) Amended by Finance Act, 2076. A person designated under subsection (5) shall, when selling such goods to an unregistered person, issue an invoice in the prescribed format at the made-public price and make arrangement to collect tax at the consumer level as well. Provided that Amended by Finance Act, 2076. any person not designated under subsection (5) may also voluntarily issue an invoice under this subsection. 14A.

Electronic Invoice: (1) A taxpayer may issue an electronic invoice with prior approval of the Department. (2) Notwithstanding anything written in subsection (1), the Department may, by publishing a notice, order taxpayers specified in such notice to mandatorily issue invoices through electronic means and to link such electronic means to the Central Invoice Monitoring System (CIMS) of the Department. (3) The Department shall establish and implement procedures regarding the security and reliability of the software or equipment for issuing invoices through electronic means. Such procedures shall be followed by the concerned producers, distributors, and users. 15. Unregistered Person Not to Collect Tax: (1) An unregistered person shall not issue any invoice or document indicating collection of tax, nor collect tax. (2) If any unregistered person collects tax, the tax so collected shall be assessed and recovered from him/her. (3) Notwithstanding anything written in subsection (1) or (2), the Government of Nepal, a Provincial Government, a Local Level, or an international organization, institution or mission in Nepal, or a public entity transacting goods not subject to value added tax shall collect tax when selling goods or services subject to value added tax. 16. Maintenance of Accounts of Transactions: (1) A taxpayer shall maintain up-to-date accounts of his/her transactions for the tax period under Section 18, and shall make such accounts available to the Tax Officer wherever they are, if the Tax Officer requests to inspect them. (1A) The Department may have continuous access to the computer database of the taxpayer. (2) The accounts kept by the taxpayer shall include the following matters:- (a) Date of transaction, (b) Value of each transaction, (c) Registration number of the other party to the transaction, if registered, and (d) Other matters as prescribed relating to the transaction. (3) Amended by Finance Act, 2078. A registered person shall use a purchase and sales account ledger certified by the concerned Tax Officer for the purpose of maintaining accounts. (3A) Deleted by Finance Act, 2078. (4) A taxpayer shall keep the accounts of transactions safe for the prescribed period. (5) Added by First Amendment. Accounts maintained by a taxpayer upon completing the procedure prescribed by this Act or the rules made under this Act shall be accepted as valid until proven otherwise. 16A.

Computer Processed Records Admissible as Evidence: (1) Notwithstanding anything written in the prevailing law, records processed by computers available at the Department or its subordinate offices relating to the taxpayer shall, for tax purposes, be admissible as evidence unless proven otherwise. (2) The Department may, by publishing a notice, make necessary arrangements regarding issuing invoices through electronic means, maintaining accounts, submitting tax returns, and making payments. 16B. Deduction of Tax Paid on

Lost Goods: Value added tax paid on goods lost or damaged due to fire, theft, accident, breakage, or destructive activities, Added by Finance Act, 2078. or whose useful life has expired, may be deducted as prescribed. 17. Input Tax Credit: (1) A registered person may deduct the amount of tax paid or payable when importing or receiving goods or services related to his/her taxable transaction from the tax amount collected by him/her. Amended by Finance Act, 2075. (2) Notwithstanding anything written in subsection (1), in the case of prescribed goods that may be used for commercial or personal purposes, provision may be made for not allowing input tax credit or allowing it only partially. (3) If the full portion of goods or services transacted in any month is not used in taxable transactions, input tax credit for tax previously paid on such goods or services shall be allowed only to the extent used in taxable transactions, as prescribed. (4) If goods or services for which input tax credit is allowed under this section cease to be used in taxable transactions before the expiry of the prescribed useful life period, tax shall be assessed and collected as if such goods or services were immediately sold at market price, as prescribed. (5) Notwithstanding anything written in subsection (1), the input tax credit available to a registered person dealing in used goods shall be as prescribed. Amended by Finance Act, 2075. (5A) Subject to subsection (2), a taxpayer may deduct tax paid on capital goods imported or purchased under a loan agreement under financial lease.

Added by Finance Act, 2075. (5B) Tax paid under subsection (2) Added by Finance Act, 2080. and (2A) of Section 8, Section 12A., and subsection (3) of Section 15 shall be allowed as input tax credit to the concerned taxpayer. (6) Input tax credit under this Act shall be allowed only after the claim is substantiated by documents as prescribed. (7) Provision regarding deduction of tax paid or payable on goods in stock at the time of registration, intended for use in taxable transactions, shall be as prescribed. Added by Finance Act, 2075. (8) Notwithstanding anything written elsewhere in this section, a taxpayer who fails to submit tax returns for a continuous period of six months may be publicly named, and if there is a balance amount of input tax credit to be allowed, such credit may be frozen and his/her registration may also be suspended. 18. Submission of Tax Return: (1) A taxpayer shall self-assess the tax amount payable by him/her for each month and submit a tax return to the Tax Officer Added by Finance Act, 2075. or by registered post or through electronic means as prescribed, within twenty-five days of the expiry of that month. Such return shall be submitted whether or not any taxable transactions were carried out in that month. Added by Finance Act, 2075. (1A) Notwithstanding anything written in subsection (1), a taxpayer from a district where there is no Inland Revenue Office or Taxpayer Service Office may submit the tax amount payable and the tax return to the concerned District Treasury and Accounts Controller Office within the fifteenth day of the month following the month for which the return is due. The Treasury and Accounts Controller Office shall forward the tax return and tax payment details received in this manner to the concerned Inland Revenue Office or Taxpayer Service Office within seven days. Amended by Finance Act, 2079. (1B) The procedure for submitting and forwarding returns under Section 10B1., subsection (1) and subsection (1A) shall be as determined by the Department. (2) Notwithstanding anything written in subsection (1), a taxpayer may submit a tax return for a period of less or more than one month as prescribed. Added by Finance Act, 2081. (3) If a taxpayer required to submit a tax return under this section fails to do so within four months after the expiry of the due date for submission, the Tax Officer may detain the import or export of such taxpayer. 19.

Payment of Tax: (1) A taxpayer shall pay the tax for each tax period within twenty-five days from the date of expiry of that period. Amended by First Amendment. Added by Finance Act, 2075. (2) If a taxpayer fails to pay the tax payable within the time limit mentioned in subsection (1), an additional charge at the rate of ten percent per annum shall be levied on the outstanding tax amount. (3) Deleted by Finance Act, 2075. (4) If a taxpayer submits an application for waiver of the additional charge Amended by Finance Act, 2075. leviable under subsection (2) showing that he/she could not pay the tax amount within the time limit due to

circumstances beyond his/her control, and if the reason appears reasonable, the Director General may waive such charge. Amended by Finance Act, 2080. (5) Amended by Finance Act, 2075. While calculating the additional charge under subsection (2) Amended by Finance Act, 2080. and the interest under Section 26, the calculation shall be made from the date the time limit for paying the tax of the same tax period Amended by Finance Act, 2075. from which the liability to pay the tax amount originated expires. Added by First Amendment. (6) If, while assessing the tax of a taxpayer under Section 20, it is found that the tax refundable to him/her exceeds the tax recoverable from him/her for that tax period, no additional charge and interest shall be collected while assessing his/her tax for that tax period. Amended by Finance Act, 2075. (7) Payment of tax within the time limit mentioned in subsection (1) may also be made through electronic means or by a bank guaranteed cheque (good for payment cheque). If payment is made through electronic means, the date of payment order shall be deemed the date of payment, and if payment is made by a bank guaranteed cheque (good for payment cheque), the date of receipt by the office shall be deemed the date of payment. Added by Finance Act, 2076. (7A) Notwithstanding anything written in subsection (7), when paying tax exceeding ten lakh rupees, payment shall be made by cheque, draft, or electronic means. Added by Finance Act, 2079. (7B) Notwithstanding anything written in this section, the tax payment procedure for a person registered under Section 10B1. shall be as determined by the Department. Added by Finance Act, 2080.

Added by First Amendment. (8) Interest shall not be collected on interest, additional charge, and penalty. 20. Tax Officer May Assess Tax: (1) The Tax Officer may assess tax in any of the following circumstances:- (a) If a tax return is not submitted within the time limit, (b) If an incomplete or incorrect tax return is submitted, (c) If a false tax return is submitted, (d) If the Tax Officer has reason to believe that the tax amount has been understated or is incorrect, (e) (Added by First Amendment) If the Tax Officer has reason to believe that there has been under-invoicing of the supply value, (f) If supply is made to a group company by under-invoicing, (g) If a person liable to register transacts without registering, (h) If sales are made without issuing an invoice, (i) If an unregistered person collects tax, (j) If tax is not deposited under subsection (2), (2A) or (3) of Section 8, Amended by Finance Act, 2081. (k) If the condition under subsection (4) of Section 17 exists. (2) While assessing tax under subsection (1), the assessment may be made on any or all of the following bases:- (a) Evidence of transactions, (b) Tax audit report submitted by the concerned Tax Officer regarding the transactions, (c) Tax submitted by other persons engaged in similar types of transactions. (3) Notwithstanding anything written in subsection (2), while assessing tax as above, the burden of proof shall lie on the concerned Tax Officer. Amended by Finance Act, 2075. (4) While assessing tax under subsection (1), the assessment shall be completed within four years from the date of submission of the tax return. If the assessment cannot be made within that period, the return submitted shall be deemed automatically accepted. (4A) Notwithstanding anything written in subsection (4), if any person has evaded tax by preparing false accounts, invoices, or other documents, or by fraud, the Department may at any time order a reassessment Added by the Finance Act, 2075.23gh.

Power to detain, seize, or require deposit: (1) Where any person, firm, company or organization has engaged in tax evasion transactions and, if immediate action is not taken, there is a likelihood that the accused may abscond or evidence of the offense may disappear, the Tax Officer may, with the approval of the Director General, perform or cause to perform the following acts:-

- (a) to seal the business premises,
- (b) to seize electronic equipment and its records,
- (c) to prepare a slip and demand cash deposit or bail guarantee for an amount equal to the evaded tax from

the person believed to have committed the offense,

(d) to freeze the bank account held in the name of the taxpayer for up to three months,

Provided that, where the tax assessment process has not been completed, the bank account may be frozen for an additional three months with the approval of the Director General.

(e) if cash deposit is not made or bail guarantee is not provided pursuant to clause (c), to detain for a maximum of forty-five days, not exceeding fifteen days at one time.

(2) The Tax Officer shall have the same powers as a police officer under the law in relation to the investigation and inquiry of offenses under this Act. 24. Where deductible amount exceeds: (1) If, in any month, the amount of tax deductible under Section 17 by a registered person exceeds the amount of tax collected in that month, such excess amount may be adjusted against any amount payable up to that month under this Act.

(2) The amount remaining after adjustment under sub-section (1) may be adjusted by the registered person against the tax payable in the following month.

(3) The registered person may submit an application to the concerned Tax Officer as prescribed to obtain a refund of the amount remaining after adjustment in accordance with this section for a continuous period of Amended by the Finance Act, 2076.4 months. Amended by the Finance Act, 2075.(4) Notwithstanding anything contained in sub-section (2) or (3), if a registered person who sells more than forty percent of the total monthly sales through Amended by the Finance Act, 2081.exports submits an application for a refund of the amount deductible as tax under Section 17, following the procedure specified in this section, such amount shall be adjusted against any outstanding amount payable, and the remaining amount may be applied for refund in a lump sum.

Amended by the Finance Act, 2075.(5) If any application is made under sub-section (3) or (4), the Tax Officer shall refund the amount determined to be refundable, and if the refund is not made within sixty days from the date of application under sub-section (3) or within thirty days under sub-section (4), the Government of Nepal shall also pay interest on such amount as prescribed.

(6) Once a registered person has claimed a refund of the amount remaining after adjustment under sub-sections (3) and (4), such amount shall not be adjusted against the tax collected in the following month. 25. Tax may be refunded: (1) A refund of the tax amount as follows shall be made if an application is received within three years from the date of the related transaction:-

Amended by the Finance Act, 2075.(a) Tax paid in Nepal by a diplomat of a state, regional or international mission or organization accredited to Nepal, to the extent of their consumption, where the foreign state, regional or international mission or organization, as recognized by the Ministry of Foreign Affairs of the Government of Nepal, provides tax exemption facilities to Nepali diplomats on a reciprocal basis;

Added by the Finance Act, 2076.(a1) Tax paid by a diplomatic mission enjoying diplomatic facilities, upon the recommendation of the Ministry of Foreign Affairs of the Government of Nepal, on the purchase of taxable goods or services in Nepal;

Added by the Finance Act, 2077.(a2) Tax paid by the United Nations, its member organizations and specialized agencies, in the course of carrying out their objectives, on the purchase of taxable goods or services in Nepal;

(b) Tax paid by an international organization or such organization for which tax exemption facilities have been granted by the Ministry of Finance of the Government of Nepal;

(c) Tax paid in the course of operating a project in Nepal Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066 pursuant to bilateral or multilateral agreements for which tax exemption consent has been obtained from the Ministry of Finance of the Government of Nepal;

(d) Tax collected erroneously. Added by the Finance Act, 2075.(1a) Notwithstanding anything contained in sub-section (1), tax paid by a diplomatic mission or diplomat on the purchase of taxable goods or services shall not be refunded for a single purchase of less than Amended by the Finance Act, 2076.ten thousand rupees.

Added by the Finance Act, 2076.(1b) If any Amended by the Finance Act, 2080.consumer makes payment for the purchase of goods and services determined by the Department through publication of a notice, using electronic means in accordance with prevailing law, ten percent of the tax paid on such purchase shall be refunded to the consumer's bank account as a cash incentive, following the procedure prescribed by the Department. (2) When refunding tax under clause (d) of sub-section (1), the refund shall be made only to the person bearing the actual burden of the tax. Added by the Finance Act, 2075.25a. Refund of tax paid on purchases by foreign tourists: If a foreign tourist visiting Nepal and departing by air purchases taxable goods worth more than twenty-five thousand rupees and takes them with them, the tax paid on such goods shall be refunded according to the procedure prescribed by the Department. Three percent of such refundable amount shall be deducted as service charge. 25b. Refund of tax at the customs point upon re-export: If any goods are re-exported, the amount of the deposit paid as value added tax at the customs office, based on the proof of re-export of such goods, shall be refunded to the concerned person by the concerned customs office. 25c. Refund of tax upon re-export: If any goods are re-exported and payment is received in advance in convertible currency, the amount paid as value added tax by the concerned person on the purchase shall be refunded to them. Added by the Finance Act, 2075.25gha1.

Refund of tax overpaid under contract or agreement: (1) Where a public entity under prevailing public procurement law or an organization wholly or partly owned by the Government of Nepal pays the amount for goods or services supplied under a contract or agreement, the tax deposited in the name of the concerned contractor or supplier may be adjusted against the tax payable by such contractor or supplier. (2) If, after adjustment for a continuous period of four months under sub-section (1), such excess deposited amount cannot be adjusted and the concerned contractor or supplier wishes to obtain a refund, they shall submit an application to the Tax Officer. (3) If an application is made by any person under sub-section (2), the Tax Officer shall refund the amount determined to be refundable within sixty days from the date of application. (4) Once the concerned contractor or supplier has claimed a refund of the amount remaining after adjustment under sub-section (2), such amount shall not be adjusted against the tax collected in the following month. Added by the Finance Act, 2075.25ga2. Refund of tax paid on purchases by pharmaceutical industry: (1) If a pharmaceutical industry purchases raw materials, auxiliary raw materials, and packaging materials required for the production of medicines from domestic industries, they may submit an application to the Tax Officer for a quarterly refund of the tax paid on such purchases. (2) If an application is made by any person under sub-section (1), the Tax Officer shall refund the amount determined to be refundable within sixty days from the date of application. 25gh. Tax not refundable: Notwithstanding anything contained elsewhere in this Act, any amount required to be refunded under this Act shall not be refunded if no application for refund is made within three years from the date of expiry of the tax period. 26. Interest: (1) If any amount payable under this Act is not deposited within the due date, interest shall be charged on the outstanding amount from the date of

default. Such interest shall also be calculated in cases where an application for administrative review under Section 31a or for appeal under Section 32 is filed. (2) For the purpose of sub-section (1), the rate of interest shall be fifteen percent per annum. 27. Treated as tax: Fees, interest, and penalties leviable under this Act shall be treated as tax leviable under this Act. 28.

Provisions relating to import: (1) Except as otherwise specified by the Ministry of Finance of the Government of Nepal, the Customs Officer shall collect the tax under this Act on imported goods. Amended by the Finance Act, 2081.(1a) If goods produced or manufactured in Nepal, after completion of Amended by the Finance Act, 2081.export procedures from the customs office or after reaching abroad, are re-imported due to refusal by the concerned party or other reasons, and if such goods are Amended by the Finance Act, 2081.to be exported again within three months of such importation, the value added tax applicable at the time of such return may be released upon keeping a deposit, and such deposit shall be refunded after the goods are Amended by the Finance Act, 2081.re-exported. The concerned customs office shall provide details of the amount so deposited and refunded to Omitted by the Finance Act, 2080. the Department. (2) For the purpose of collecting and recovering tax on imported goods, the Customs Officer may exercise the powers under this Act and the prevailing Customs Act. 29.

Penalties: Amended by the First Amendment.(1) If any person commits any of the following offenses, the Tax Officer may impose a penalty as follows:- Amended by the Finance Act, 2079.(a) For violating an order given by the Tax Officer for registration under Section 5a, or violating sub-section (1) or (2) of Section 10, or failing to register under sub-section (1) of Section 10a, sub-section (1) of Section 10b, and sub-section (1) of Section 10b1, twenty thousand rupees for each offense; (b) For violating Amended by the Finance Act, 2076.sub-section (5) or (6) of Section 10, one thousand rupees for each offense; Added by the Finance Act, 2075.(b1) For failing to keep a tax register or not keeping a tax register in the prescribed place under this Act or rules made under this Act, two thousand rupees for each offense; Added by the Finance Act, 2076.(b2) For violating sub-section (7) of Section 10, ten thousand rupees for each offense; Amended by the Finance Act, 2076.(c) For violating sub-section (1) of Section 14 by not issuing an invoice, ten thousand rupees for each offense, and for not taking an invoice, one thousand rupees for each offense; Added by the Finance Act, 2076.(c1) For violating sub-section (4) of Section 14, ten thousand rupees for each offense; Amended by the Finance Act, 2075.(d) For violating Section 15, one hundred percent of the tax collected; Amended by the Finance Act, 2075.(e) For not maintaining updated accounts of transactions under sub-section (1) of Section 16, ten thousand rupees, and for not allowing inspection of transaction accounts, twenty thousand rupees for each offense; (f) For violating sub-section (2) of Section 16, up to five thousand rupees; (g) For violating sub-section (3) or (4) of Section 16, ten thousand rupees; Omitted by the Finance Act, 2078.(g1) (g2) If a taxpayer who has obtained or not obtained approval to issue electronic invoices is found using software capable of deleting or correcting data, five hundred thousand rupees; (g3) If a person manufacturing, installing, or operating software or equipment for issuing electronic invoices fails to comply with the procedure issued by the Department under Section 14a, five hundred thousand rupees; (h) For violating the provisions of Section 18, 0.05 percent of the tax leviable per day or one thousand rupees per tax period, whichever is higher; (j) For obstructing or opposing any act under Section 23, five thousand rupees for each offense; (n) For under-invoicing, two thousand rupees for each invoice or the penalty leviable under sub-section (2), whichever is higher; Provided that, if the office deems necessary, goods that have been under-invoiced may be purchased as prescribed. (t) For violating this Act or rules made under this Act, one thousand rupees for each offense. (1a) If any person reduces tax liability by failing to comply with this Act or rules made under this Act, the Tax Officer may impose a penalty of up to twenty-five percent of the tax evaded, based on the basis prescribed by the Department. (1b) If, during a stock verification of any taxpayer, goods are found in excess

of those recorded in the purchase account, the Tax Officer may assess the income from such goods and, after determining the market value of such excess goods, impose a penalty amounting to fifty percent of such value. (1c) If a seller issues an invoice without transferring the goods or services, the seller may be punished with a penalty of fifty percent of the invoice value Added by the Finance Act, 2076.or imprisonment for up to 6 months or both.

Added by the Finance Act, 2077.(1d) If a person liable for registration transacts without registering, the Tax Officer may impose a penalty amounting to fifty percent of the tax evaded on such person. Added by the Finance Act, 2080.(1e) If a person is found to have obtained a refund automatically through electronic means under clauses (a), (a1), and (a2) of sub-section (1) of Section 25 without being entitled to such refund, the Tax Officer may impose a penalty of twenty-five percent of the tax evaded. Amended by the Finance Act, 2075.(2) If any person commits any of the following offenses, the Tax Officer may impose a penalty of one hundred percent of the tax evaded or imprisonment for up to six months or both on such person:-

- (a) Preparing false accounts, invoices, or other documents;
- (b) Evading tax through fraud;
- (c) An unregistered person acting as a registered person;
- (d) Selling by under-invoicing;
- (e) Conducting transactions in violation of Section 30.

(3) An abettor who knowingly or negligently helps, assists, incites, or advises a person committing any offense under this Act shall be liable to a penalty of fifty percent of the tax underpaid by such person. 29a. Department may order to deposit penalty amount: (1) Notwithstanding anything contained elsewhere in this Act, if a person voluntarily admits in writing, before the initiation of proceedings, to having committed one or more offenses under sub-section (2) of Section 29, the Department may order such person to deposit a penalty amount not exceeding the penalty leviable for such offense.

(2) When issuing an order under sub-section (1), the Department shall specify in such order the details of the offense, the amount of penalty to be paid, and the date by which the penalty amount must be paid.

(3) An order issued by the Department under this section shall be final. Added by the Finance Act, 2075.29b.

Concerned officer to be liable: (1) If any entity fails to comply with any matter required to be complied with under this Act, every employee serving as an officer of such entity at that time shall be liable for such act. (2) If any entity does not pay tax by the date on which the tax must be paid, every officer currently serving or who served up to six months prior in such entity shall be deemed liable, jointly or severally, for the payment of such tax. (3) Notwithstanding anything contained in sub-sections (1) and (2), those sub-sections shall not apply in the following circumstances:- (a) Where the entity committed such offense without the knowledge or consent of that person; and (b) Where such person had taken or used such care, diligence, and skill as would normally be adopted by a person exercising ordinary human prudence to prevent such offense. (4) If any person pays tax under sub-section (2), such person may do the following:- (a) Recover the amount so deposited from that entity; (b) For the purpose of clause (a), take possession of the property of that entity in or coming into their custody, to the extent not exceeding the amount so deposited. (5) If any person takes possession of any property under clause (b) of sub-section (4), no claim shall be made against such person by that entity or any other person. Explanation: For the purpose of this section, "concerned officer" shall be understood to mean the manager of such entity or a person acting in that capacity. 30. Suspension of

business: If a registered person commits any offense mentioned in Section 29 two or more times, the Director General may, for each such offense, order the Tax Officer to suspend the business premises of such person from carrying out transactions for up to a maximum of seven days. Amended by the Finance Act, 2075.30a. Power to order re-assessment: (1) If, from information received by the Director General, it appears that before the completion of a tax assessment, any proceeding related to such assessment is or has become irregular, the Director General may, after recording reasons in writing, order the concerned Tax Officer or any other Tax Officer to reassess the tax. (2) If it appears that a Tax Officer has assessed tax negligently or mala fide, resulting in a reduction of tax liability, the Director General may order the amendment of such assessment order within four years from the date of the original assessment. 31.

Powers equivalent to a court: For the purposes of this Act, the Tax Officer shall have the same powers as a court concerning summoning the concerned person, taking statements, examining evidence, and requiring the production of documents. Amended by the Finance Act, 2075.31a. Application for administrative review: (1) Any person aggrieved by a tax assessment decision made by a Tax Officer may file an application with the Director General against such decision within thirty days from the date of receipt of notice of such decision. (2) If the time limit for filing an application under sub-section (1) has expired, an application may be filed with the Director General for extension of time within seven days from the date of expiry, stating the reason for the expiry, and if the reason mentioned in such application appears reasonable, the Director General may extend the time limit by up to thirty days from the date of expiry. (3) If, upon investigation of an application filed by a taxpayer under sub-section (1), the taxpayer's claim appears to be true, the Director General may, after recording reasons in writing, set aside such assessment order and order the concerned Tax Officer or any other Tax Officer to reassess the tax. (4) The Director General shall render a decision on an application filed under sub-section (1) within sixty days from the date of such application. (5) If the Director General fails to render a decision within the time limit under sub-section (4), the concerned person may file an appeal to the Revenue Tribunal under Section 32. (6) A taxpayer filing an application under sub-section (1) shall pay the undisputed tax amount out of the assessed tax and deposit Amended by the Finance Act, 2077.one-fourth of the disputed tax amount. (7) Amended by the Finance Act, 2076.If the deposit required under sub-section (6) has already been deposited in excess before filing the application, only the remaining amount after deducting the amount covered by such excess deposit shall be deposited. (8) The amount deposited under this section shall not be refunded until the final settlement of the case. Amended by the Finance Act, 2075.32. Appeal to Revenue Tribunal: (1) Any person aggrieved by an order of suspension made by the Director General under Section 30 or a decision made by the Director General under sub-section (4) of Section 31a may file an appeal to the Revenue Tribunal. (2) A person filing an appeal under sub-section (1) shall, within fifteen days from the date of filing the appeal, provide written notice to the Department attaching a copy of the appeal petition. Added by the Finance Act, 2075.32a.

Advance ruling: (1) If any person submits a written application to the Department for the resolution of any doubt regarding the application of this Act, the Department may, after notifying such person in writing, issue its view by an advance ruling as prescribed. (2) Notwithstanding anything contained in sub-section (1), the Department shall not issue an advance ruling under sub-section (1) on a matter concerning a doubt arising in the implementation of this Act if such matter is sub judice in a court or has already been decided by a court. Added by the Finance Act, 2075.32b. Public circular: (1) To bring uniformity in the implementation of this Act, simplify tax administration, and provide guidance to officers of the Department or subordinate offices, as well as persons affected by this Act, the Department may issue written public circulars including interpretations of the provisions contained in this Act. (2) Circulars issued under sub-section (1) may be published on the Department's own website or through Amended by the Finance Act, 2078.national level newspapers or other

electronic means for public information. (3) Unless a circular issued under sub-section (1) is revoked, the Department shall be bound to act in accordance with such circular. Amended by the Finance Act, 2078.33. Deposit required: (1) When filing an appeal to the Revenue Tribunal under this Act, the undisputed tax amount out of the assessed tax must be paid, and fifty percent of the disputed tax amount and penalty must be deposited or a bank guarantee for such amount must be provided. (2) When calculating the deposit or bank guarantee amount under sub-section (1), Omitted by the Finance Act, 2079 the twenty-five percent tax amount deposited for administrative review in the Department shall also be calculated. Added by the Finance Act, 2079.(3) A bank voucher deposited in the deposit account at the Office of the Comptroller and Auditor General in the name of the concerned office, or a bank guarantee equal to such amount, under sub-section (1), must be submitted along with the appeal petition. 34. Delegation of powers: (1) Except for the power to assess tax and impose penalties, the Tax Officer may delegate any or all of the powers conferred on them under this Act to subordinates. (2) The powers specifically designated to be exercised by the Director General under this Act shall not be delegated. Added by the Finance Act, 2075.34a. May engage expert services: The Government of Nepal or the Department may engage the services of relevant experts for tax audit, investigation, or management related work, and the provisions regarding official secrecy mentioned in Section 37 shall apply to such experts. 35.

Identity card of Tax Officer: Every Tax Officer shall carry an identity card as prescribed and shall Amended by the First Amendment.show the identity card to the concerned person in the course of performing their duties. 36. Service of notice: A notice, order, or document issued by the Director General or any Tax Officer shall be deemed to have been served after the procedure prescribed is completed. 37. Secrecy: Documents or other information relating to tax obtained from any person shall not be disclosed or published in any circumstances except the following:- (a) To inform revenue collection authorities for the purpose of protecting the revenue of the Government of Nepal; (b) To present as evidence in a court pursuant to revenue-related law for the purpose of proving a taxpayer's liability; (c) To keep as part of public records in the course of proceedings of the Revenue Tribunal or any court. 38. Punishment to Tax Officer: If the Director General determines that any tax assessment has been made mala fide or negligently, resulting in an increase or decrease in tax liability, the Director General shall initiate departmental proceedings against the Tax Officer making such assessment in accordance with the law relating to their terms of service. Provided that, while initiating such proceedings, the Tax Officer shall be given a reasonable opportunity to present their defense. 39. Not liable for acts done in good faith: Notwithstanding anything contained elsewhere in this Act, no Tax Officer shall be personally liable for any act done in good faith in the performance of their duties. Amended by the Finance Act, 2075.40.

Reward and informer fee: (1) A person providing information with evidence that a taxpayer has evaded or attempted to evade all or part of their tax liability may be awarded, by decision of the Director General, an amount equal to twenty percent of the tax amount determined on the basis of the evidence provided by them out of the tax recovered on the basis of such information. (2) If there is more than one person entitled to the reward, the reward amount shall be distributed proportionately. (3) Notwithstanding anything contained in sub-section (1), a person providing information on revenue leakage may be given an immediate informer fee of up to ten thousand rupees, based on the veracity of the information, in accordance with the procedure determined by the Department. (4) The name, surname, and address of the person providing information under sub-sections (1) and (3) shall be kept confidential. 41. Power to make rules: The Government of Nepal may make necessary rules to implement the objectives of this Act. 42. Amendment to Schedule: The Government of Nepal may, by publishing a notice in the Nepal Gazette, make necessary additions, deletions, or changes to the Schedule. 43. Other matters to be governed by prevailing law: Matters written in this Act and the rules made under this Act shall be governed accordingly, and other matters shall be governed by

prevailing law. 44. Repeal and savings: (1) The following Acts are hereby repealed:- (a) Sales Tax Act, 2023. (b) Hotel Tax Act, 2018. (c) Contract Tax Act, 2023. (d) Entertainment Tax Act, 2017. (2) All acts and proceedings done under the Acts repealed under sub-section (1) shall be deemed to have been done under this Act. Schedule-1 (Relating to sub-section (3) of Section 5) Goods and Services Exempted from Tax 06.01 Group 1: Basic Agricultural Products Bulbs, tubers, tuberous roots, corms, crowns, and rhizomes, dormant, in growth or in flower; chicory plants and roots other than roots of heading 12.12. 0601.10.00 -Dormant bulbs, tubers, tuberous roots, corms, crowns and rhizomes 0601.20.00 -Bulbs, tubers, tuberous roots, corms, crowns and rhizomes, in growth or in flower; chicory plants and roots 06.02 Other live plants (including their roots), cuttings, mushroom spawn. 0602.10.00 -Unrooted cuttings and slips 0602.20.00 -Trees, shrubs and bushes, grafted or not, of kinds which bear edible fruit or nuts 0602.30.00 -Rhododendrons and azaleas, grafted or not 0602.40.00 -Roses, grafted or not 0602.90.00 -Other 07.01 Potatoes, fresh or chilled.

0701.10.00 -Seed 0701.90.00 -Other 07.02 0702.00.00 Tomatoes, fresh or chilled. 07.03 Onions, shallots, garlic, leeks and other alliaceous vegetables, fresh or chilled. 0703.10.00 -Onions and shallots 0703.90.00 -Leeks and other alliaceous vegetables 07.04 Cabbages, cauliflowers, kohlrabi, kale and similar edible brassicas, fresh or chilled. 0704.10.00 -Cauliflowers and broccoli 0704.20.00 -Brussels sprouts 0704.90.00 -Other 07.05 Lettuce (*Lactuca sativa*) and chicory (*Cichorium* spp.), fresh or chilled. -Lettuce: 0705.11.00 --Cabbage lettuce (head lettuce) 0705.19.00 --Other -Chicory: 0705.21.00 --Witloof chicory (*Cichorium intybus* var. *foliosum*) 0705.29.00 --Other 07.06 Carrots, turnips, salad beetroot, salsify, celeriac, radishes and similar edible roots, fresh or chilled. 0706.10.00 -Carrots and turnips 0706.90.00 -Other 07.07 0707.00.00 Cucumbers and gherkins, fresh or chilled. 07.08 Leguminous vegetables, shelled or unshelled, fresh or chilled. 0708.20.00 -Beans (including cowpeas) (*Vigna* spp., *Phaseolus* spp.) 0708.90.00 -Other leguminous vegetables 07.09 Other vegetables, fresh or chilled. 0709.20.00 -Asparagus 0709.30.00 -Aubergines (egg-plants) 0709.40.00 -Celery other than celeriac -Mushrooms and truffles: 0709.51.00 --Mushrooms of the genus *Agaricus* 0709.52.00 --Mushrooms of the genus *Boletus* 0709.53.00 --Mushrooms of the genus *Cantharellus* 0709.54.00 --Shiitake (*Lentinus edodes*) 0709.55.00 --Matsutake (*Tricholoma matsutake*, *Tricholoma magnivelare*, *Tricholoma anatolicum*, *Tricholoma dulciolens*, *Tricholoma caligatum*) 0709.56.00 --Truffles (*Tuber* spp.) 0709.59.00 --Other 0709.60.00 -Fruits of the genus *Capsicum* or of the genus *Pimenta* 0709.70.00 -Spinach, New Zealand spinach and orache spinach (garden spinach) -Other: 0709.91.00 --Globe artichokes 0709.92.00 --Olives 0709.93.00 --Pumpkins, squash and gourds (*Cucurbita* spp.) 0709.99.00 --Other 07.11 Vegetables provisionally preserved but unsuitable in that state for immediate consumption. 0711.20.00 -Olives 0711.40.00 -Cucumbers and gherkins -Mushrooms and truffles: 0711.51.00 --Mushrooms of the genus *Agaricus* 0711.59.00 --Other 0711.90.00 -Other vegetables; mixtures of vegetables 07.13 Dried leguminous vegetables, shelled, whether or not skinned or split. -Peas (*Pisum sativum*): 0713.10.10 Unsplit, with skin 0713.10.90 Other 0713.20.00 -Chickpeas (garbanzos) -Beans (*Vigna* spp., *Phaseolus* spp.): 0713.31.00 --Mung beans (*Vigna mungo* (L.) Hepper) or green gram (*Vigna radiata* (L.)) 0713.32.00 --Small red (adzuki) beans 0713.33.00 --Kidney beans, including white pea beans (*Phaseolus vulgaris*) 0713.34.00 --Bambara beans (*Vigna subterranea* or *Voandzeia subterranea*) 0713.35.00 --Cowpeas (*Vigna unguiculata*) 0713.39.00 --Other -Lentils: 0713.40.10 --Unsplit, with skin 0713.40.90 --Other 0713.50.00 -Broad beans (*Vicia faba* var. *major*) and horse beans (*Vicia faba* var. *equina*, *Vicia faba* var. *minor*) 0713.60.00 -Pigeon peas (*Cajanus cajan*) 0713.90.10 Split: 0713.90.90 Other 07.14 Manioc, arrowroot, salep, Jerusalem artichokes, sweet potatoes and similar roots and tubers with high starch or inulin content, fresh, chilled, frozen or dried, whether or not sliced or in the form of pellets; sago pith.

0714.10.00 -Manioc (cassava)

0714.20.00 -Sweet potatoes

0714.30.00 -Yams (Dioscorea spp.)
0714.40.00 -Taro (Colocasia spp.)
0714.50.00 -Yautia (Xanthosoma spp.)
0714.90.00 -Other (omitted in customs tariff)

23.06 Oil-cake and other solid residues, whether or not ground or in the form of pellets, resulting from the extraction of vegetable or microbial fats or oils, other than those of heading 23.04 or 23.05.

-Of oil seeds (rape or colza seeds):

2306.41.00 --Of low erucic acid rape or colza seeds

2306.90.00 -Other

23.09 2309.90.00 Preparations of a kind used in animal feeding.

-Other

43.01 Raw or processed, but not cut, flax (linen or similar bast); flax tow and waste (including yarn waste and garnetted stock). 4301.10.00 -Flax, raw or retted

-Flax, broken, scutched, hackled or otherwise processed, but not cut:

4301.21.00 --Broken or scutched

4301.29.00 --Other

4301.30.00 -Flax tow and waste

43.03 Raw or processed, but not cut, jute and other bast fibres (excluding flax, true hemp and ramie); tow and waste of these fibres (including yarn waste and garnetted stock). 4303.10.00 -Raw or retted jute and other bast fibres

Notes:-

1. Unprocessed tobacco sold by farmers. 2. Goods falling under the aforementioned customs headings 06.01 to 08.10 shall not be exempt from value added tax on supplies made by hotels, restaurants, bars, guest houses, cafeterias or similar establishments. Group 2: Goods of Basic Necessity

25.01 Salt (including table salt and denatured salt) and pure sodium chloride, whether or not in aqueous solution or containing added anti-caking or free-flowing agents; sea water. 2501.00.10 Salt

27.16 2716.00.00 Electrical energy. Notes:-

1. Drinking water supplied in bulk from taps and tankers. Group 3: Livestock and Animal Products

01.02 Live bovine animals.

-Cattle:

0102.21.00 --Pure-bred breeding animals

0102.29.00 --Other

-Buffaloes:

0102.31.00 --Pure-bred breeding animals

0102.39.00 --Other

0102.90.00 -Other

01.03 Live swine. 0103.10.00 -Pure-bred breeding animals

-Other:

0103.91.00 --Weighing less than 50 kg

0103.92.00 --Weighing 50 kg or more

01.04 Live sheep and goats. 0104.10.00 -Sheep

0104.20.00 -Goats

01.05 Live poultry, that is, fowls of the species *Gallus domesticus*, ducks, turkeys and guinea fowls.

-Weighing not more than 184 g:

0105.11.00 --Fowls of the species *Gallus domesticus*

0105.12.00 --Turkeys

0105.13.00 --Ducks

0105.14.00 --Geese

0105.15.00 --Guinea fowls

-Other:

0105.94.00 --Fowls of the species *Gallus domesticus*

0105.99.00 --Other

01.06 Other live animals.

-Mammals:

0106.14.00 --Rabbits

0106.19.00 --Other

-Birds:

0106.33.00 --Ostriches; emus (*Dromaius novaehollandiae*)

-Insects:

0106.41.00 --Bees

0106.90.00 -Other

02.01 Fresh or chilled meat of bovine animals. 0201.10.00 -Carcasses and half-carcasses

0201.20.00 -Other cuts with bone in

0201.30.00 -Boneless

02.03 Meat of swine, fresh, chilled or frozen.

-Fresh or chilled:

0203.11.00 --Carcasses and half-carcasses

0203.12.00 --Hams, shoulders and cuts thereof, with bone in

0203.19.00 --Other

02.04 Fresh, chilled or frozen meat of sheep or goats.

0206.10.00 -Of bovine animals, fresh or chilled

0206.30.00 -Of swine, fresh or chilled

0206.80.00 -Other, fresh or chilled

02.07 Meat and edible offal, of the poultry of heading 01.05, fresh, chilled or frozen.

-Of fowls of the species *Gallus domesticus*:

0207.11.00 --Not cut in pieces, fresh or chilled

0207.13.00 --Cuts and offal, fresh or chilled

-Of turkeys:

0207.24.00 --Not cut in pieces, fresh or chilled

0207.26.00 --Cuts and offal, fresh or chilled

-Of ducks:

0207.41.00 --Not cut in pieces, fresh or chilled

0207.43.00 --Fatty livers, fresh or chilled

0207.44.00 --Other, fresh or chilled

-Of geese:

0207.51.00 --Not cut in pieces, fresh or chilled

0207.53.00 --Fatty livers, fresh or chilled

0207.54.00 --Other, fresh or chilled

0207.60.00 -Of guinea fowls

03.01 Live fish.

-Ornamental fish:

0301.11.00 --Freshwater

0301.19.00 --Other

-Other live fish:

0301.91.00 --Trout (*Salmo trutta*, *Oncorhynchus mykiss*, *Oncorhynchus clarkii*, *Oncorhynchus aguabonita*, *Oncorhynchus gilae*, *Oncorhynchus apache* and *Oncorhynchus chrysogaster*)

0301.92.00 --Eels (*Anguilla* spp.)

0301.93.00 --Carp (*Cyprinus* spp., *Carassius* spp., *Ctenopharyngodon idellus*, *Hypophthalmichthys* spp., *Cirrhinus* spp., *Mylopharyngodon piceus*, *Catla catla*, *Labeo* spp., *Osteochilus hasselti*, *Leptobarbus hoeveni*, *Megalobrama* spp.)

0301.94.00 --Atlantic and Pacific bluefin tunas (*Thunnus thynnus*, *Thunnus orientalis*)

0301.95.00 --Southern bluefin tunas (*Thunnus maccoyii*)

0301.99.00 --Other

03.02 Fresh or chilled fish, excluding fish fillets and other fish meat of heading 03.04.

-Salmonidae, excluding edible fish offal of subheadings 0302.91 to 0302.99:

0302.11.00 --Trout (*Salmo trutta*, *Oncorhynchus mykiss*, *Oncorhynchus clarkii*, *Oncorhynchus aguabonita*, *Oncorhynchus gilae*, *Oncorhynchus apache* and *Oncorhynchus chrysogaster*)

0302.13.00 --Pacific salmon (*Oncorhynchus nerka*, *Oncorhynchus gorbuscha*, *Oncorhynchus keta*, *Oncorhynchus tshawytscha*, *Oncorhynchus kisutch*, *Oncorhynchus masou* and *Oncorhynchus rhodurus*)

0302.14.00 --Atlantic salmon (*Salmo salar*) and Danube salmon (*Hucho hucho*)

0302.19.00 --Other

-Flat fish (*Pleuronectidae*, *Bothidae*, *Cynoglossidae*, *Soleidae*, *Scophthalmidae* and *Citharidae*), excluding edible fish offal of subheadings 0302.91 to 0302.99:

0302.21.00 --Halibut (*Reinhardtius hippoglossoides*, *Hippoglossus hippoglossus*, *Hippoglossus stenolepis*)

0302.22.00 --Plaice (*Pleuronectes platessa*)

0302.23.00 --Sole (*Solea* spp.)

0302.24.00 --Turbot (*Psetta maxima*)

0302.29.00 --Other

-Tunas (of the genus *Thunnus*), skipjack tuna (stripe-bellied bonito) (*Katsuwonus pelamis*), excluding edible fish offal of subheadings 0302.91 to 0302.99:

0302.31.00 --Albacore or longfinned tunas

0302.32.00 --Yellowfin tunas (*Thunnus albacares*)

0302.39.00 --Other

-Herrings (*Clupea harengus*, *Clupea pallasii*), anchovies (*Engraulis* spp.), sardines (*Sardina pilchardus*, *Sardinops* spp.), sardinella (*Sardinella* spp.), bristling or sprats (*Sprattus sprattus*), mackerel (*Scomber scombrus*, *Scomber australasicus*, *Scomber japonicus*), Indian mackerels (*Rastrelliger* spp.), seerfishes

(*Scomberomorus* spp.), jack and horse mackerel (*Trachurus* spp.), jacks, crevalles (*Caranx* spp.), cobia (*Rachycentron canadum*), silver pomfrets (*Pampus* spp.), Pacific saury (*Cololabis saira*), scads (*Decapterus* spp.), capelin (*Mallotus villosus*), swordfish (*Xiphias gladius*), kawakawa (*Euthynnus affinis*), bonitos (*Sarda* spp.), marlins, sailfishes, spearfishes (*Istiophoridae*), excluding edible fish offal of subheadings 0302.91 to 0302.99:

0302.41.00 --Herrings (*Clupea harengus*, *Clupea pallasii*)

0302.42.00 --Anchovies (*Engraulis* spp.)

0302.43.00 --Sardines (*Sardina pilchardus*, *Sardinops* spp.), sardinella (*Sardinella* spp.), bristling or sprats (*Sprattus sprattus*)

0302.44.00 --Mackerel (*Scomber scombrus*, *Scomber australasicus*, *Scomber japonicus*)

0302.45.00 --Jack and horse mackerel (*Trachurus* spp.)

0302.46.00 --Cobia (*Rachycentron canadum*)

0302.47.00 --Swordfish (*Xiphias gladius*)

0302.49.00 --Other

-Fish of the families *Bregmacerotidae*, *Euclichthyidae*, *Gadidae*, *Macrouridae*, *Melanonidae*, *Merlucciidae*, *Moridae* and *Muraenolepididae*, excluding edible fish offal of subheadings 0302.91 to 0302.99:

0302.51.00 --Cod (*Gadus morhua*, *Gadus ogac*, *Gadus macrocephalus*)

0302.52.00 --Haddock (*Melanogrammus aeglefinus*)

0302.53.00 --Coalfish (*Pollachius virens*)

0302.54.00 --Hake (*Merluccius* spp., *Urophycis* spp.)

0302.55.00 --Alaska pollock (*Theragra chalcogramma*)

0302.56.00 --Blue whittings (*Micromesistius poutassou*, *Micromesistius australis*)

0302.59.00 --Other

-Tilapias (*Oreochromis* spp.), catfish (*Pangasius* spp., *Silurus* spp., *Clarias* spp., *Ictalurus* spp.), carp (*Cyprinus* spp., *Carassius* spp., *Ctenopharyngodon idellus*, *Hypophthalmichthys* spp., *Cirrhinus* spp., *Mylopharyngodon piceus*, *Catla catla*, *Labeo* spp., *Osteochilus hasselti*, *Leptobarbus hoeveni*, *Megalobrama* spp.), eels (*Anguilla* spp.), Nile perch (*Lates niloticus*) and snakeheads (*Channa* spp.), excluding edible fish offal of subheadings 0302.91 to 0302.99:

0302.71.00 --Tilapias (*Oreochromis* spp.)

0302.72.00 --Catfish (*Pangasius* spp., *Silurus* spp., *Clarias* spp., *Ictalurus* spp.)

0302.73.00 --Carp (*Cyprinus* spp., *Carassius* spp., *Ctenopharyngodon idellus*, *Hypophthalmichthys* spp., *Cirrhinus* spp., *Mylopharyngodon piceus*, *Catla catla*, *Labeo* spp., *Osteochilus hasselti*, *Leptobarbus hoeveni*, *Megalobrama* spp.)

0302.74.00 --Eels (*Anguilla* spp.)

0302.79.00 --Other

-Other fish, excluding edible fish offal of subheadings 0302.91 to 0302.99:

0302.81.00 --Dogfish and other sharks

0302.82.00 --Rays and skates (*Rajidae*)

0302.83.00 --Toothfish (*Dissostichus* spp.)

0302.84.00 --Seabass (*Dicentrarchus* spp.)

0302.85.00 --Seabream (*Sparidae*)

0302.89.00 --Other

04.01 Milk and cream, not concentrated, not containing added sugar or other sweetening matter.

0401.10.00 -Of a fat content, by weight, not exceeding 1%

0401.20.00 -Of a fat content, by weight, exceeding 1% but not exceeding 6%

0401.40.00 -Of a fat content, by weight, exceeding 6% but not exceeding 10%

0401.50.00 -Of a fat content, by weight, exceeding 10%

04.06 Cheese and curd. 0406.10.00 -Fresh cheese (unripened or uncured cheese), including whey cheese, and curd

04.07 Eggs of birds, in shell, fresh, preserved or cooked.

-Fertilised eggs for incubation:

0407.11.00 --Of fowls of the species *Gallus domesticus*

0407.19.00 --Other

-Other fresh eggs:

0407.21.00 --Of fowls of the species *Gallus domesticus*

0407.29.00 --Other

0407.90.00 -Other

05.11 Animal products not elsewhere specified or included; dead animals of Chapter 1 or 3, unfit for human consumption.

-Other:

0511.91.00 --Fish waste or meal, and crustacean waste

--Other:

0511.99.90 Bone meal

Notes:- Goods falling under the aforementioned customs headings 01.02 to 04.07 shall not be exempt from value added tax on supplies made by hotels, restaurants, bars, guest houses, cafeterias or similar establishments. Group 4: Agricultural Materials

31.01 3101.00.00 Animal or vegetable fertilisers, whether or not mixed together or chemically treated; fertilisers produced by mixing or chemical treatment of animal or vegetable products. 31.02 Mineral or chemical fertilisers, nitrogenous.

-Urea, whether or not in aqueous solution:

3102.10.10 Diesel exhaust fluid

Other:

3102.10.91 Technical grade

3102.10.99 Other

-Ammonium sulphate; double salts and mixtures of ammonium sulphate and ammonium nitrate:

3102.21.00 --Ammonium sulphate

3102.29.00 --Other

3102.30.00 -Ammonium nitrate, whether or not in aqueous solution

3102.40.00 -Mixtures of ammonium nitrate with calcium carbonate or other inorganic non-fertilising substances

3102.50.00 -Sodium nitrate

3102.60.00 -Double salts and mixtures of calcium nitrate and ammonium nitrate

3102.80.00 -Mixtures of urea and ammonium nitrate in aqueous or ammoniacal solution

3102.90.00 -Other, including mixtures not specified in the foregoing subheadings

31.03 Mineral or chemical fertilisers, phosphatic.

-Superphosphates:

3103.11.00 --Containing by weight 35% or more of diphosphorus pentaoxide (P₂O₅)

3103.19.00 --Other

3103.90.00 -Other

31.04 Mineral or chemical fertilisers, potassic. 3104.20.00 -Potassium chloride

3104.30.00 -Potassium sulphate

3104.90.00 -Other

31.05 Mineral or chemical fertilisers containing two or three of the fertilising elements nitrogen, phosphorus and potassium; other fertilisers; goods of this Chapter in tablets or similar forms or in packages of a gross weight not exceeding 10 kg.

3105.10.00 -Goods of this Chapter in tablets or similar forms or in packages of a gross weight not exceeding 10 kg 3105.20.00 -Mineral or chemical fertilisers containing the three fertilising elements nitrogen, phosphorus and potassium 3105.30.00 -Diammonium hydrogenorthophosphate (diammonium phosphate) 3105.40.00 -Ammonium dihydrogenorthophosphate (monoammonium phosphate) and mixtures thereof with diammonium hydrogenorthophosphate (diammonium phosphate) -Other mineral or chemical fertilisers containing the two fertilising elements nitrogen and phosphorus: 3105.51.00 --Containing nitrates and phosphates 3105.59.00 --Other 3105.60.00 -Mineral or chemical fertilisers containing the two fertilising elements phosphorus and potassium 3105.90.00 -Other 39.23 Articles for the conveyance or packing of goods, of plastics; stoppers, lids, caps and other closures, of plastics. -Boxes, cases, crates and similar articles: 3923.10.20 Egg crates 48.19 Cartons, boxes, cases, bags and other packing containers, of paper, paperboard, cellulose wadding or webs of cellulose fibres; box files, letter trays, and similar articles, of paper or paperboard, of a kind used in offices, shops or the like. -Cartons, boxes and cases, of corrugated paper or paperboard: 4819.10.10 Egg crates 56.08 Knotted netting of twine, cordage or rope; made-up fishing nets and other made-up nets, of textile materials. -Of man-made textile materials: 5608.11.00 --Made-up fishing nets 82.01 Hand tools of the following kinds: spades, shovels, mattocks, picks, hoes, forks and rakes; axes, bill hooks and similar hewing or splitting tools; secateurs and pruners of any kind; scythes, sickles, hay knives, hedge shears, timber wedges and other tools used in agriculture, horticulture or forestry. -Spades and shovels: 8201.10.10 Spades 8201.30.00 -Mattocks, picks, hoes and rakes 8201.40.00 -Axes, bill hooks and similar hewing or splitting tools 8201.50.00 -Secateurs and similar one-handed pruners and shears (including poultry shears) 8201.60.00 -Hedge shears, two-handed pruners and similar two-handed shears -Other hand tools for use in agriculture, horticulture or forestry: 8201.90.10 For use in agriculture or horticulture 8201.90.90 Other 87.01 Tractors (other than tractors of heading 87.09). -Single axle tractors 8701.10.10 Power tillers, mini tillers 8701.10.90 Other Notes: (1) Made-up cages for fish farming falling under subheading 7314.49.00, automatic fish feeders falling under subheading 8479.89.99. (2) Metal barrels (7310.10.00 and 7310.29.00), queen excluders, foundation sheet rollers and wheel plates (7326.90.00), bee brushes (9603.90.00), gear pumps (8413.71.00) required for beekeeping, imported by the beekeeping industry. (3) Greenhouses falling under subheadings 9406.10.10 and 9406.90.10, imported by agricultural, horticultural and floriculture farms. (4) Trays used for germinating and planting seeds falling under subheading 3926.90.99. (5) Raw materials for feed supplements falling under Chapters 23, 28 and 29 of the customs tariff, limestone powder of subheading 2521.00.00, imported by the feed and livestock/poultry industry. (6) Special types of vessels for feeding and watering poultry falling under subheading 3924.90.10 and heading 73.23, excluding ordinary utensils.

Group 5: Medical Treatment and Similar Health Services

28.04 Hydrogen, rare gases and other non-metals. 2804.40.10 Medical grade

2804.40.90 Other

30.01 Dried, whether or not powdered, glands and other organs for organo-therapeutic uses; extracts of glands or other organs or of their secretions for organo-therapeutic uses; heparin and its salts; other human or animal substances prepared for therapeutic or prophylactic uses, not elsewhere specified or included.

3001.20.00 -Extracts of glands or other organs or of their secretions

3001.90.00 -Other

30.02 Human blood; animal blood prepared for therapeutic, prophylactic or diagnostic uses; antisera and other blood fractions and immunological products, whether or not obtained by means of biotechnological processes; vaccines, toxins, cultures of micro-organisms (excluding yeasts) and similar products; cell cultures, whether or not modified.

-Antisera, other blood fractions and immunological products, whether or not obtained by means of biotechnological processes:

3002.12.00 --Antisera and other blood fractions

3002.13.00 --Immunological products, unmixed, not put up in measured doses or in forms or packings for retail sale

3002.14.00 --Immunological products, mixed, not put up in measured doses or in forms or packings for retail sale

3002.15.00 --Immunological products, put up in measured doses or in forms or packings for retail sale

-Vaccines, toxins, cultures of micro-organisms (excluding yeasts) and similar products:

3002.41.00 --Vaccines for human medicine

3002.42.00 --Vaccines for veterinary medicine

3002.49.00 --Other

-Cell cultures, whether or not modified:

3002.51.00 --Cell therapy products

3002.59.00 --Other

3002.90.90 Other

30.03 Medicaments (excluding goods of heading 30.02, 30.05 or 30.06) consisting of two or more constituents mixed together for therapeutic or prophylactic uses, not put up in measured doses or in forms or packings for retail sale. 3003.10.00 -Containing penicillins or derivatives thereof, with a penicillanic acid structure, or streptomycins or their derivatives

3003.20.00 -Containing other antibiotics

-Other, containing hormones or other products of heading 29.37:

3003.31.00 --Containing insulin

3003.39.00 --Other

-Other, containing alkaloids or derivatives thereof:

3003.41.00 --Containing ephedrine or its salts

3003.42.00 --Containing pseudoephedrine (INN) or its salts

3003.43.00 --Containing norephedrine or its salts

3003.49.00 --Other

3003.60.00 -Other, containing antimalarial active principles described in Subheading Note 2 to this Chapter

-Other:

3003.90.10 Homeopathic, purely Ayurvedic, Unani medicines

3003.90.90 Other

30.04 Medicaments (excluding goods of heading 30.02, 30.05 or 30.06) consisting of mixed or unmixed products for therapeutic or prophylactic uses, put up in measured doses (including those in the form of transdermal administration systems) or in forms or packings for retail sale.

3004.10.00 -Containing penicillins or derivatives thereof, with a penicillanic acid structure, or streptomycins or their derivatives

3004.20.00 -Containing other antibiotics

-Other, containing hormones or other products of heading 29.37:

3004.31.00 --Containing insulin

3004.32.00 --Containing corticosteroid hormones, their derivatives or structural analogues

3004.39.00 --Other

-Other, containing alkaloids or derivatives thereof:

3004.41.00 --Containing ephedrine or its salts

3004.42.00 --Containing pseudoephedrine (INN) or its salts

3004.43.00 --Containing norephedrine or its salts

3004.49.00 --Other

3004.60.00 -Other, containing antimalarial active principles described in Subheading Note 2 to this Chapter

-Other:

3004.90.10 Homeopathic, Ayurvedic (pure), Unani medicines

3004.90.41 Including Batti sa, Drakashav, Triphala, Kabjar, and Kesari Jivan Dashmularisht, Ashokarisht, Kalpsundari:

3004.90.90 Other

30.05 Wadding, gauze, bandages and similar articles (for example, dressings, adhesive plasters, poultices), impregnated or coated with pharmaceutical substances or put up in forms or packings for retail sale for medical, surgical, dental or veterinary purposes.

-Adhesive dressings and other articles having an adhesive layer:

3005.10.10 Adhesive gauze

3005.10.20 Adhesive plaster

3005.10.30 Adhesive tape

3005.10.90 Other

-Other:

3005.90.10 Medicated cotton wool

3005.90.30 Surgical tape

3005.90.90 Other

30.06 Pharmaceutical goods specified in Note 4 to this Chapter. 3006.60.00 -Chemical contraceptive preparations based on hormones, other products of heading 29.37 or spermicides

38.22 Diagnostic or laboratory reagents on a backing, prepared diagnostic or laboratory reagents whether or not on a backing, whether or not put up in the form of test kits; certified reference materials. 3822.11.00 --For malaria

3822.12.00 --For Zika and other diseases transmitted by mosquitoes of the genus Aedes

3822.13.00 --For blood-grouping

3822.19.00 --Other

38.24 Prepared binders for foundry moulds or cores; chemical products and preparations of the chemical or allied industries (including those consisting of mixtures of natural products), not elsewhere specified or included.

--Other:

3824.99.20 Solid or liquid dialysis bath concentrates used in the treatment of kidney patients

40.14 Hygienic or pharmaceutical articles (including teats), of vulcanised rubber other than hard rubber, with or without fittings of hard rubber. 4014.10.00 -Sheath contraceptives

66.02 Walking-sticks, seat-sticks, whips, riding-crops and the like. 6602.00.10 -White canes used by visually impaired persons

87.13 Carriages for disabled persons, whether or not motorised or otherwise mechanically propelled. 8713.10.00 -Not mechanically propelled

-Other:

8713.90.10 Electric wheelchairs

8713.90.90 Other

87.14 Parts and accessories of vehicles of headings 87.11 to 87.13. 8714.20.00 -Of carriages for disabled persons

90.21 Orthopaedic appliances, including crutches, surgical belts and trusses; splints and other fracture appliances; artificial parts of the body; appliances for correcting physical defects or disabilities; hearing aids and other appliances which are worn, carried or implanted in the body to compensate for a defect or disability.

9021.50.00 -Heart pacemakers, excluding parts and accessories

9021.90.10 Crutches

9021.90.20 Parts of hearing aids

9021.90.30 Heart valves and stents for implantation

9021.90.90 Other

94.01 Seats (other than those of heading 94.02), whether or not convertible into beds, and parts thereof.

-Other seats:

9401.80.10 Commode chairs for persons with disabilities

94.03 Other furniture and parts thereof.

-Other metal furniture:

9403.20.10 Walkers for persons with disabilities

-Plastic furniture:

9403.70.10 Plastic walkers for persons with disabilities

Notes:-

(1) Health services.

(2) Plastic blood bags (9018.90.20), transfusion sets (9018.90.90), and various instruments, equipment and chemicals required for the manufacture of blood test reagents, imported by the Nepal Red Cross Society for blood transfusion services.

(3) Equipment required for the treatment of kidney disease.

(4) Slate and stylus (8471.90.00), Braille notetaker (8471.30.90)

Heading Code Description

71.03 Precious stones (other than diamonds) and semi-precious stones, whether or not worked or graded,

but not strung, mounted or set; ungraded precious stones (other than diamonds) and semi-precious stones, temporarily strung for convenience of transport. 7103.10.00 -Unworked or simply sawn or roughly shaped

- Otherwise worked
- 7103.91.00 --Rubies, sapphires and emeralds
- 7103.99.00 --Other
- 71.05 Dust and powder of natural or synthetic precious or semi-precious stones. 7105.10.00 -Of diamonds
- 7105.90.00 -Other
- Precious metals and metals clad with precious metal
- 71.06 Silver (including silver plated with gold or platinum), unwrought or in semi-manufactured forms, or in powder form. 7106.10.00 -Powder
- Other:
 - 7106.91.00 --Unwrought
 - 7106.92.00 --Semi-manufactured
- 71.08 Gold (including gold plated with platinum), unwrought or in semi-manufactured forms, or in powder form.
- Non-monetary:
 - 7108.11.00 --Powder
 - 7108.12.00 --Other unwrought forms
 - 7108.13.00 --Other semi-manufactured forms
 - 7108.20.00 -Monetary
- 71.09 7109.00.00 Base metals or silver, clad with gold, not further worked than semi-manufactured. Heading Code Description
- 71.13 Articles of jewellery and parts thereof, of precious metal or of metal clad with precious metal
- Of precious metal, whether or not plated or clad with precious metal:
 - 7113.11.00 --Of silver, whether or not plated or clad with other precious metal
 - Of other precious metal, whether or not plated or clad with precious metal
 - 7113.19.10 Of gold
 - 7113.19.90 Of other precious metal
 - 7113.20.00 -Of base metal clad with precious metal
- 71.18 Coin. 7118.90.00 -Other
- 84.01 Nuclear reactors; non-irradiated fuel elements (cartridges) for nuclear reactors; machinery and apparatus for isotopic separation.

8401.10.00 -Nuclear reactors 8401.20.00 -Machinery and apparatus for isotopic separation, and parts thereof

8401.30.00 -Non-irradiated fuel elements (cartridges) 84.02 Steam or other vapour generating boilers (other than central heating hot water boilers capable also of producing low pressure steam); super-heated water boilers. -Steam or other vapour generating boilers: 8402.11.00 --Water tube boilers with a steam production exceeding 45 tonnes per hour 8402.12.00 --Water tube boilers with a steam production not exceeding 45 tonnes per hour 8402.19.00 --Other vapour generating boilers, including hybrid boilers 8402.20.00 -Super-heated water boilers 84.03 Central heating boilers other than those of heading 84.02. Heading Code Description 8403.10.00 -Boilers 84.04 Auxiliary plant for use with boilers of heading 84.02 or 84.03 (for example, economisers, super-heaters, soot removers, gas recoverers); condensers for steam or other vapour power units. 8404.10.00 -Auxiliary plant for use with boilers of heading 84.02 or 84.03 8404.20.00 -Condensers for steam or other vapour power units 84.05 Producer gas or water gas generators, with or without their purifiers; acetylene gas generators and similar water process gas generators, with or without

their purifiers. 8405.10.00 -Producer gas or water gas generators, with or without their purifiers; acetylene gas generators and similar water process gas generators, with or without their purifiers 84.06 Steam turbines and other vapour turbines. 8406.10.00 -Turbines for marine propulsion -Other turbines: 8406.81.00 --Of an output exceeding 40 MW 8406.82.00 --Of an output not exceeding 40 MW 84.10 Hydraulic turbines, water wheels, and regulators therefor. -Hydraulic turbines and water wheels: 8410.11.00 --Of a power not exceeding 1,000 kW 8410.12.00 --Of a power exceeding 1,000 kW but not exceeding 10,000 kW 8410.13.00 --Of a power exceeding 10,000 kW 84.13 Pumps for liquids, whether or not fitted with a measuring device; liquid elevators. Heading Code Description -Other centrifugal pumps: Operated by mineral fuel (gasoline): 8413.70.11 Of a power capacity from 2 to 8 HP 8413.70.99 Battery-operated water suction pumps (D.C. pumps) 84.16 Furnace burners for liquid fuel, for pulverised solid fuel or for gas; mechanical stokers, including their mechanical grates, mechanical ash dischargers and similar appliances. 8416.10.00 -Furnace burners for liquid fuel 8416.20.00 -Other furnace burners, including combination burners 8416.30.00 -Mechanical stokers, including their mechanical grates, mechanical ash dischargers and similar appliances 84.17 Industrial or laboratory furnaces and ovens, including incinerators, non-electric.

8417.10.00 -Furnaces and ovens for the roasting, melting or other heat-treatment of ores, pyrites or metals 8417.20.00 -Bakery ovens, including biscuit ovens 8417.80.00 -Other Heading Code Description 84.19 Machinery, plant or laboratory equipment, whether or not electrically heated (excluding furnaces, ovens and other equipment of heading 84.17), for the treatment of materials by a process involving a change of temperature such as heating, cooking, roasting, distilling, rectifying, sterilising, pasteurising, steaming, drying, evaporating, vapourising, condensing or cooling, other than machinery or plant of a kind used for domestic purposes; instantaneous or storage water heaters, non-electric. -Sterilisers for medical, surgical or laboratory use: 8419.20.10 Autoclaves 8419.20.90 Other medical, surgical or laboratory sterilisers -Dryers: 8419.33.00 --Lyophilisation apparatus, freeze-drying units and spray dryers 8419.34.00 --Other, for agricultural products 8419.35.00 --Other, for wood, paper pulp, paper and paperboard 8419.39.00 --Other 8419.40.00 -Distilling or rectifying plant 8419.50.00 -Heat exchange units 8419.60.00 -Machinery for liquefying air or other gases -Other machinery, plant and equipment: 8419.81.00 --For making hot drinks or for cooking or heating food 8419.81.10 Cooling towers 8419.89.90 Other 84.20 Calendering or rolling machines, other than for metals or glass, and cylinders therefor.

8420.10.00 -Calendering or other rolling machines

84.21 Centrifuges, including centrifugal dryers; filtering or purifying machinery and apparatus for liquids or gases.

-Centrifuges, including centrifugal dryers:

8421.11.00 --Cream separators

8421.19.00 --Other

-Filtering or purifying machinery and apparatus for liquids:

8421.22.00 --For filtering or purifying beverages other than water

--Other

8421.39.10 Pressure swing adsorption oxygen plants and cryogenic oxygen air separation plants for medical grade oxygen

8421.39.90 Other

84.22 Dish washing machines; machinery for cleaning or drying bottles or other containers; machinery for filling, closing, sealing or labelling bottles, cans, boxes, bags or other containers; machinery for capsuling bottles, jars, tubes and similar containers; other packing or wrapping machinery (including heat-shrink wrapping machinery); machinery for aerating beverages.

-Dish washing machines:

8422.20.00 -Machinery for cleaning or drying bottles or other containers

8422.30.00 -Machinery for filling, closing, sealing or labelling bottles, cans, boxes, bags or other containers; machinery for capsuling bottles, jars, tubes and similar containers; machinery for aerating beverages

8422.40.00 -Other packing or wrapping machinery (including heat-shrink wrapping machinery)

84.26 Ships' derricks; cranes, including cable cranes; mobile lifting frames, straddle carriers and works trucks fitted with a crane.

-Overhead travelling cranes, transporter cranes, gantry cranes, bridge cranes, mobile lifting frames and straddle carriers

8426.11.00 --Overhead travelling cranes on fixed support

8426.12.00 --Mobile lifting frames and straddle carriers on tyres

8426.19.00 --Other

8426.20.00 -Tower cranes

8426.30.00 -Portal or pedestal jib cranes

-Other machinery, self-propelled

8426.41.00 --On tyres

8426.49.00 --Other

-Other machinery:

8426.91.00 --Designed for mounting on road vehicles

8426.99.00 --Other

84.28 Other lifting, handling, loading or unloading machinery (for example, lifts, escalators, conveyors, teleferics).

-Other continuous-action elevators and conveyors for goods or materials:

8428.31.00 --Specifically designed for underground use

8428.32.00 --Other, bucket type

8428.33.00 --Other, belt type

8428.39.00 --Other

8428.40.00 -Escalators and moving walkways

8428.60.00 -Teleferics, chairlifts, ski-draglines; traction mechanisms for funiculars

8428.90.00 -Other machinery

84.29 Self-propelled bulldozers, angledozers, graders, levellers, scrapers, mechanical shovels, excavators, shovel loaders, tamping machines and road rollers.

-Bulldozers and angledozers:

8429.11.00 --Track laying

8429.19.00 --Other

8429.20.00 -Graders and levellers

8429.30.00 -Scrapers

8429.40.00 -Tamping machines and road rollers

-Mechanical shovels, excavators and shovel loaders:

8429.51.00 --Front-end shovel loaders

8429.52.00 --Machinery with a 360-degree revolving superstructure

8429.59.00 --Other

84.30 Machinery for moving, grading, levelling, scraping, excavating, tamping, compacting, extracting or boring earth, minerals or ores. 8430.10.00 -Pile drivers and pile extractors

8430.20.00 -Snow-ploughs and snow-blowers

-Coal or rock cutters and tunnelling machinery:

8430.31.00 --Self-propelled

8430.39.00 --Other

-Other boring or sinking machinery:

8430.41.00 --Self-propelled

8430.49.00 --Other

8430.50.00 -Other machinery, self-propelled

-Other machinery, not self-propelled:

8430.61.00 --Tamping or compacting machinery

8430.69.00 --Other

84.32 Agricultural, horticultural or forestry machinery for soil preparation or cultivation; lawn or sports-ground rollers.

8432.10.00 -Ploughs

-Harrows, scarifiers, cultivators, weeders and hoes:

8432.21.00 --Disc harrows

8432.29.00 --Other

-Seeders, planters and transplanters:

8432.31.00 --No-till direct seeders, planters and transplanters

8432.39.00 --Other

-Manure spreaders and fertiliser distributors:

8432.41.00 --Manure spreaders

8432.42.00 --Fertiliser distributors

8432.50.00 -Other machinery

84.33 Harvesting or threshing machinery, including straw or fodder balers; grass or hay mowers; machines for cleaning, sorting or grading eggs, fruit or other agricultural products, other than machinery of heading
84.37.

-Mowers for lawns, parks or sports grounds:

8433.11.00 --Powered, with the cutting device rotating in a horizontal plane

8433.19.00 --Other

8433.20.00 -Other mowers, including cutter bars for tractor mounting

8433.30.00 -Other haymaking machinery

8433.40.00 -Straw or fodder balers (including pick-up balers)

-Other harvesting machinery; threshing machinery:

8433.51.00 --Combine harvesters

8433.52.00 --Other threshing machinery

8433.53.00 --Root or tuber harvesting machines

8433.59.00 --Other

8433.60.00 -Machines for cleaning, sorting or grading eggs, fruit or other agricultural products

84.34 Milking machines and dairy machinery. 8434.10.00 -Milking machines

8434.20.00 -Dairy machinery

84.35 Presses, crushers and similar machinery used in the manufacture of wine, cider, fruit juices or similar beverages. 8435.10.00 -Machinery

84.36 Other agricultural, horticultural, forestry, poultry-keeping or bee-keeping machinery, including germination plant fitted with mechanical or thermal equipment; poultry incubators and brooders. 8436.10.00

- Machinery for preparing animal feeding stuffs
- Poultry-keeping machinery; poultry incubators and brooders:

8436.21.00 --Poultry incubators and brooders

8436.29.00 --Other

8436.80.00 -Other machinery

-Parts:

8436.91.00 --Of poultry-keeping machinery or poultry incubators and brooders

84.37 Machines for cleaning, sorting or grading seed, grain or dried leguminous vegetables; machinery used in the milling industry or for the working of cereals or dried leguminous vegetables, other than farm-type machinery. 8437.10.00 -Machines for cleaning, sorting or grading seed, grain or dried leguminous vegetables

8437.80.00 -Other machinery

84.38 Machinery, not specified or included elsewhere in this Chapter, for the industrial preparation or manufacture of food or drink, other than machinery for the extraction or preparation of animal or fixed vegetable or microbial fats or oils. 8438.10.00 -Bakery machinery and machinery for the manufacture of macaroni, spaghetti or similar products

8438.20.00 -Machinery for the manufacture of confectionery, cocoa or chocolate

8438.30.00 -Machinery for sugar manufacture

8438.40.00 -Brewery machinery

8438.50.00 -Machinery for the preparation of meat or poultry

8438.60.00 -Machinery for the preparation of fruits, nuts or vegetables

-Other machinery

8438.80.10 Tea sorting machines, CTC machines, tea fermenting machines, tea drying machines, LTP machines

8438.80.90 Other machinery

84.39 Machinery for making pulp of fibrous cellulosic material or for making or finishing paper or paperboard.

8439.10.00 -Machinery for making pulp of fibrous cellulosic material

8439.20.00 -Machinery for making paper or paperboard

8439.30.00 -Machinery for finishing paper or paperboard

84.40 Book-binding machinery, including book-sewing machines.

8440.10.00 -Machinery 84.41 Other machinery for making up paper pulp, paper or paperboard, including cutting machines of all kinds. 8441.10.00 -Cutting machines 8441.20.00 -Machines for making bags, sacks or envelopes 8441.30.00 -Machines for making cartons, boxes, cases, tubes, drums or similar containers, other than by moulding 8441.40.00 -Machines for moulding articles in paper pulp, paper or paperboard 8441.50.00 -Other machinery 84.42 Machinery, apparatus and equipment (other than the machines of headings 84.56 to 84.65) for preparing or making plates, cylinders or other printing components; plates, cylinders and other printing components; plates, cylinders and lithographic stones, prepared for printing purposes (for example, planed, grained or polished). 8442.30.00 -Machinery, apparatus and equipment 84.43 Printing machinery used for printing by means of plates, cylinders and other printing components of heading 84.42; other printers, copying machines and facsimile machines, whether or not combined; parts and accessories thereof. -Printing machinery used for printing by means of plates, cylinders and other printing components of heading 84.42: 8443.11.00 --Offset printing machinery, reel-fed 8443.12.00 --Offset printing machinery, sheet-fed,

office type (using sheets of a size not exceeding 22 cm by 36 cm in the unfolded state) 8443.13.00 --Other offset printing machinery 8443.14.00 --Letterpress printing machinery, reel fed, excluding flexographic printing 8443.15.00 --Letterpress printing machinery, other than reel fed, excluding flexographic printing 8443.16.00 --Flexographic printing machinery 8443.17.00 --Gravure printing machinery 8443.19.00 --Other 84.44 8444.00.00 Machines for extruding, drawing, texturing or cutting man-made textile materials. 84.45 Machines for preparing textile fibres; spinning, doubling or twisting machines and other machinery for producing textile yarns; textile reeling or winding (including weft-winding) machines and machines for preparing textile yarns for use on machines of heading 84.46 or 84.47. -Machines for preparing textile fibres: 8445.11.00 --Carding machines 8445.12.00 --Combing machines 8445.13.00 --Drawing or roving machines 8445.19.00 --Other 8445.20.00 -Textile spinning machines 8445.30.00 -Textile doubling or twisting machines 8445.40.00 -Textile winding (including weft-winding) or reeling machines 8445.50.00 -Other 84.46 Weaving machines (looms).

8446.10.00 -For weaving fabrics of a width not exceeding 30 cm

-For weaving fabrics of a width exceeding 30 cm, shuttle type:

8446.21.00 --Power looms

8446.29.00 --Other

8446.30.00 -For weaving fabrics of a width exceeding 30 cm, shuttleness type

84.47 Knitting machines, stitch-bonding machines and machines for making gimped yarn, tulle, lace, embroidery, trimmings, braid or net and machines for tufting.

-Circular knitting machines:

8447.11.00 --With cylinder diameter not exceeding 165 mm

8447.12.00 --With cylinder diameter exceeding 165 mm

8447.20.00 -Flat knitting machines; stitch-bonding machines

8447.90.00 -Other

84.49 Machinery for the manufacture or finishing of felt or nonwovens in the piece or in shapes, including machinery for making felt hats; blocks for making hats. 8449.00.10 Face mask making machines

8449.00.20 Other machines

8449.00.90 Parts

84.51 Machinery (other than machines of heading 84.50) for washing, cleaning, wringing, drying, ironing, pressing (including fusing presses), bleaching, dyeing, dressing, finishing, coating or impregnating textile yarns, fabrics or made-up textile articles; machines for applying paste to the base fabric or other support used in the manufacture of floor coverings such as linoleum; machines for reeling, unreeling, folding, cutting or pinking textiles.

-Drying machines:

8451.29.00 --Other

8451.30.00 -Ironing machines and presses (including fusing presses)

-Ironing machines and presses (including fusing presses)

8451.40.00 -Washing, bleaching or dyeing machines

8451.50.00 -Machines for reeling, unreeling, folding, cutting or pinking textiles

8451.80.00 -Other machinery

84.52 Sewing machines, other than book-sewing machines of heading 84.40; furniture, bases and covers specially designed for sewing machines; sewing machine needles.

-Other sewing machines:

8452.21.00 --Automatic units

8452.29.00 --Other

84.53 Machinery for preparing, tanning or working hides, skins or leather or for making or repairing footwear or other articles of hides, skins or leather, other than sewing machines. 8453.10.00 -Machinery for preparing, tanning or working hides, skins or leather

8453.20.00 -Machinery for making or repairing footwear

8453.80.00 -Other machinery

84.54 Converters, ladles, ingot moulds and casting machines of a kind used in metallurgy or in metal foundries. 8454.10.00 -Converters

8454.20.00 -Ingot moulds

8454.30.00 -Casting machines

84.55 Metal-rolling mills and rolls therefor. 8455.10.00 -Tube mills

-Other rolling mills:

8455.21.00 --Hot or combination hot and cold

8455.22.00 --Cold

8455.30.00 -Rolls for rolling mills

84.56 Machine-tools for working any material by removal of material, by laser or other light or photon beam, ultrasonic, electro-discharge, electro-chemical, electron beam, ionic-beam or plasma arc processes; water-jet cutting machines.

-Operated by laser or other light or photon beam processes:

8456.11.00 --Operated by laser

8456.12.00 --Operated by other light or photon beam processes

8456.20.00 -Operated by ultrasonic processes

8456.30.00 -Operated by electro-discharge processes

8456.40.00 -Operated by plasma arc processes

8456.50.00 -Water-jet cutting machines

8456.90.00 -Other

84.57 Machining centres, unit construction machines (single station) and multi-station transfer machines, for working metal.

8457.10.00 -Machining centres

8457.20.00 -Unit construction machines (single station)

8457.30.00 -Multi-station transfer machines

84.58 Lathes (including turning centres) for removing metal.

-Horizontal lathes:

8458.11.00 --Numerically controlled

8458.19.00 --Other

-Other lathes:

8458.91.00 --Numerically controlled

8458.99.00 --Other

84.59 Machine-tools (including way-type unit head machines) for drilling, boring, milling, threading or tapping by removing metal, other than lathes (including turning centres) of heading 84.58. 8459.10.00 -Way-type unit head machines

-Other drilling machines:

8459.21.00 --Numerically controlled

8459.29.00 --Other

-Other boring-milling machines:

8459.31.00 --Numerically controlled

8459.39.00 --Other

-Other boring machines:

8459.41.00 --Numerically controlled

8459.49.00 --Other

-Knee-type milling machines:

8459.51.00 --Numerically controlled

8459.59.00 --Other

-Other milling machines:

8459.61.00 --Numerically controlled

8459.69.00 --Other

8459.70.00 -Other threading or tapping machines

84.65 Machine-tools (including machines for nailing, stapling, glueing or otherwise assembling) for working wood, cork, bone, hard rubber, hard plastics or similar hard materials.

-Other:

8465.92.00 --Planing, milling or moulding (by cutting) machines

84.70 Calculating machines and pocket-size data recording, reproducing and displaying machines with calculating functions; accounting machines, postage-franking machines, ticket-issuing machines and similar machines, incorporating a calculating device; cash registers. 8470.90.00 -Cash machines

84.74 Machinery for sorting, screening, separating, washing, crushing, grinding, mixing or kneading earth, stone, ores or other mineral substances, in solid (including powder or paste) form; machinery for agglomerating, shaping or moulding solid mineral fuels, ceramic paste, unhardened cements, plastering materials or other mineral products in powder or paste form; machines for forming foundry moulds of sand.

8474.10.00 -Sorting, screening, separating or washing machines

8474.20.00 -Crushing or grinding machines

-Mixing or kneading machines:

8474.31.00 --Concrete or mortar mixers

8474.32.00 --Machines for mixing mineral substances with bitumen

8474.39.00 --Other

8474.80.00 -Other machinery

84.75 Machines for assembling electric or electronic lamps, tubes or bulbs or flashbulbs, in glass envelopes; machines for manufacturing or hot working glass or glassware. 8475.10.00 -Machines for assembling electric or electronic lamps, tubes or bulbs or flashbulbs, in glass envelopes

-Machines for manufacturing or hot working glass or glassware:

8475.21.00 --Machines for making optical fibres and preforms thereof

8475.29.00 --Other

8475.90.00 -Other

84.77 Machinery for working rubber or plastics or for the manufacture of products from these materials, not specified or included elsewhere in this Chapter. 8477.10.00 -Injection-moulding machines

8477.20.00 -Extruders

8477.30.00 -Blow-moulding machines

8477.40.00 -Vacuum moulding machines and other thermoforming machines

-Other machinery for moulding or otherwise forming:

8477.51.00 --For moulding or retreading pneumatic tyres or for moulding or otherwise forming inner tubes

8477.59.00 --Other

8477.80.00 -Other machinery

84.78 Machinery for preparing or making up tobacco, not specified or included elsewhere in this Chapter.

8478.10.00 -Machinery

84.79 Machines and mechanical appliances having individual functions, not specified or included elsewhere in this Chapter.

8479.10.00 -Machinery for public works, building or the like 8479.20.00 -Machinery for the extraction or

preparation of animal or fixed vegetable or microbial fats or oils 8479.30.00 -Presses for the manufacture of

particle board or fibre building board of wood or other ligneous materials and other machinery for treating

wood or cork 8479.40.00 -Rope or cable-making machines -Other machines and mechanical appliances:

8479.81.00 --Machines for treating metal, including electric wire coil-winders 8479.82.00 ????.?? Motor vehicles

for special purposes, other than those principally designed for the transport of persons or goods (for example,

breakdown lorries, crane lorries, fire fighting vehicles, concrete mixer lorries, road sweepers, spraying lorries,

mobile workshops, mobile radiological units). ????.?? - Fire fighting vehicles (fire engines) ??? Chassis

fitted with engines, for motor vehicles of headings ??? to ???. ????.?? Chassis of three-wheelers

(tempos) powered by electric motor (B) Other goods and services 1. Service of storing agricultural produce in

cold storage and silos. 2. Postal services (operated only by the Government of Nepal) (a) Service relating to

transport or transmission of letters, money and parcels. (b) Other services required for the service relating to

transport or transmission of letters, money and parcels. 3. Services provided by the Government of Nepal,

Province or Local Level. 4. Financial service, life insurance service, accident insurance, health insurance,

reinsurance service, agricultural crop insurance, fruit insurance, bee insurance, animal insurance, poultry

insurance, fish insurance, micro insurance, money transfer, money exchange, SWIFT service, hire purchase

transactions, deposit and credit guarantee service, capital market business, securities business, merchant

banking business, commodity futures market, and securities and commodity brokerage business. 5. Parts

and accessories under heading ??? used in electric rickshaws, imported by industries registered with the

objective of producing electric rickshaws in Nepal, for their production purpose. 6. Goods falling under the

following subheadings, imported upon the recommendation of the Alternative Energy Promotion Centre, for

generating electricity from solar power, and for operating solely from solar energy and producing solar

thermal energy: (a) ????.??, ????.??, ????.??, ????.??, ????.??, ????.??, ????.??, ????.?? and ????.?? (b) Lithium-ion batteries falling under subheading ????.??, with capacity less

than 12 volts and less than 10 amperes, used in solar lanterns. 7. Spare parts imported by the jute industry

for the operation of its industry, upon the recommendation of the Department of Industry. 8. Woollen yarn

(excluding synthetic and acrylic) used in hand-knitted sweaters made domestically. 9. Goods received as

grants for any natural disaster or charity, approved by the Ministry of Finance, Government of Nepal. 10.

Goods for personal purposes not subject to customs duty, imported under the information relating to goods

for private use that passengers may bring or take. 11. For hydropower generation, distribution and

transmission line projects: construction equipment, machinery tools, and related parts and raw materials

(steel sheets) required for such projects, when imported by the concerned hydropower project or its

contractor or project promoter upon the recommendation of the Investment Board (in cases operated with its

approval), the Alternative Energy Promotion Centre (in cases operated with its approval), or the Department

of Electricity Development (in other cases, including projects operated by the Nepal Electricity Authority), and supplied to the project, value added tax shall be exempted. 12. For reservoir and semi-reservoir hydropower projects with a capacity exceeding two hundred megawatts, for which financial closure has been completed by Chaitra ?????: construction equipment, plant, machinery tools and related parts, explosives, penstock pipes and steel plates, imported by the promoter, project, or its contractor upon the recommendation of the Investment Board (in cases approved by it) or the Department of Electricity Development (in other cases, including projects operated by the Nepal Electricity Authority), value added tax shall be exempted. Provided that, when making a recommendation pursuant to this sub-clause, it shall be made in accordance with the quantities specified in the detailed engineering design report of the hydropower project. 13. When diplomatic missions and donor agencies transfer vehicles (not exceeding ten years from the initial year of manufacture) imported under diplomatic facility or duty facility, to a project in accordance with the project?s approved annual work program and change to government number plates; or when vehicles (not exceeding ten years from the initial year of manufacture) imported in the name of a project under full or partial duty facility (excluding those imported under invoice or bank guarantee) are transferred to a government agency after project completion, with the approval of the Ministry of Finance, Government of Nepal, and changed to government number plates, value added tax shall not be levied. 14.

If a diplomatic mission, project, person, other government body, or non-governmental organization wishes to scrap and deregister a vehicle imported under duty facility that has exceeded 10 years from the initial year of manufacture, or an old vehicle used by a diplomatic mission or diplomatic employee that cannot be operated due to accident or technical reasons, with the approval of the Ministry of Finance, so as to render it unusable for further use, no value added tax shall be levied on such vehicle. 15. If the owner of a vehicle imported by a Nepali citizen for personal use under value added tax exemption dies, and the vehicle is transferred into the name of the deceased?s husband or wife, the value added tax payable on such vehicle shall be exempted based on the approval of the Department. 16. Value added tax shall be exempted on the import of one unit of bus with a capacity of 30 seats or more, imported by a community educational institution for the purpose of transporting students, upon the recommendation of the Ministry of Education, Science and Technology, Government of Nepal. The vehicle imported under this facility shall not be sold, distributed, transferred, or renamed for ten years. If it is renamed, sold, or any kind of title transfer occurs before ten years, full value added tax shall be levied as per the prevailing law. 17. Industries that have not availed the facility of bonded warehouse or cash deposit (passbook), if they import raw materials, auxiliary raw materials, and packaging materials not produced in Nepal required for the production of goods to be exported, and export the finished goods produced therefrom within a specified period in accordance with a specified procedure, the tax levied at the customs point on such import of raw materials, auxiliary raw materials, and packaging materials shall be refunded at the customs point itself, on goods as specified in a notice published in the Nepal Gazette, from the date specified therein, and at the rate specified therein, by way of value added tax refund. 18. Machinery purchased by an industry for the purpose of reprocessing batteries. 19. Service of issuing certificates of origin for export purposes. Group 12: Buildings and Land Purchase, sale and rental of houses and land (excluding services provided by hotels, guesthouses and apartments, and services provided by commercially operated entities similar to hotels or guesthouses) Group 13: Betting, Casinos and Lotteries Activities relating to the provision of facilities for betting or gambling, lotteries.

Note:

(1) In respect of goods in Groups 1 to 11 above, for goods whose name or description is mentioned under an eight-digit subheading under a four-digit heading, tax exemption shall be available only if both the subheading

and the name or description of the goods match; and it shall not be an impediment to granting exemption to goods falling under the "other" subheading for which a specific name or description is not mentioned. The Department may, in consultation with the Customs Department as necessary, add, delete or modify the interpretation of exempted goods and services and the Harmonized Code of goods as required.

(2) The Government of Nepal may, if it deems appropriate to grant any exemption or tax refund in relation to taxable goods, grant such exemption by publishing a notice in the Nepal Gazette. Schedule-2

(Relating to Sub-section (2) of Section 7)

Goods and Services Taxable at Zero Rate

1. Amended by the Finance Act, 2081. Goods exported: if it is proven that the supply of goods is made as follows,-

(a) exported, or

(b) placed as stores on an international flight with a destination outside Nepal, or

(c) placed for retail sale, supply or consumption on an international flight with a destination outside Nepal. 2. Services supplied to a person outside Nepal:

(a) Services supplied by a person resident in Nepal to a person outside Nepal who has no commercial operation, business representation or legally recognized representative in Nepal,

(b) Supply of goods or services by a person resident and registered in Nepal to a person resident outside Nepal. 3. Goods and services imported by a person or mission entitled to diplomatic facility, upon the recommendation of the Ministry of Foreign Affairs, Government of Nepal, and by a person employed in a diplomatic mission entitled to duty facility. 4. If any treaty or agreement previously provided for sales tax exemption on import, then upon the recommendation of the concerned project, for the duration such treaty or agreement remains in force, a registered taxpayer making local purchases shall be provided zero-rate facility on such supply. 5. Raw materials and produced goods sold to an industry operating in a Special Economic Zone established pursuant to prevailing law. 6.

Machinery tools and their parts, equipment, penstock pipes or iron sheets used to make them, if produced by a local industry and supplied directly to the concerned project or through the project's contractor to the project, then in cases operated with the approval of the Investment Board, upon the recommendation of that Board; in cases operated with the approval of the Alternative Energy Promotion Centre, upon the recommendation of that Centre; and in other cases, upon the recommendation of the Department of Electricity Development, such industry shall be provided zero-rate facility on that transaction in accordance with the procedure prescribed by the Department. 7. If sculptures, paintings, architectural works and other similar handicraft items produced domestically by cottage and small entrepreneurs are exported abroad through approved export trading houses in Nepal, the value added tax paid on the raw materials used in producing such items shall be refunded after completing the procedure prescribed by the Department. 8. Scooters designed for use by persons with disabilities. 9. If machinery, equipment and construction materials as per the approved master list, required in the course of operating a project in Nepal pursuant to a bilateral or multilateral agreement concluded with the consent of tax exemption from the Ministry of Finance, Government of Nepal, are produced by a domestic industry and supplied directly to the concerned project or through the project's contractor to the project, then such industry shall be provided zero-rate facility on that supply in accordance with the procedure prescribed by the Department. 10. Deep cycle lead acid batteries falling under subheading 8507.10.00, produced by a domestic industry and used in electric vehicles, upon the recommendation of the Department of Environment, Ministry of Forests and Environment, Government of

Nepal.